

Teesside Corporation (General Powers) (No. 2) Act 1971

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ELIZABETH II



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An Act to re-enact with amendments and to extend certain local enactments in force in the county borough of Teesside; to confer further powers on the mayor, aldermen and burgesses of that borough with regard to the local government, improvement and finances; and for other purposes. [27th July 1971]

WHEREAS—

(1) The borough of Teesside is a county borough under the management and local government of the mayor, aldermen and burgesses of the borough of Teesside:

(2) Numerous local enactments were in force in parts of the borough and by article 51 of the Teesside Order 1967 it was provided that the provisions of any such enactments should continue to apply to those parts of the borough except that certain specified enactments were extended to apply to the whole of the borough as constituted by the said order: S.I. 1967/396.

(3) It was further provided by the said article 51 that all the said local enactments should on 31st December, 1971, cease to have effect:

(4) It is expedient that further and better provision should be made with reference to the local government, improvement and

finances and the prevention of fire in, and the cultural activities of, the borough of Teesside, and that the powers of the mayor, aldermen and burgesses of the borough should be enlarged and extended as in this Act provided:

(5) It is expedient to make further provision for the superannuation of officers and servants of the council of the borough and for the benefit of their dependants:

(6) It is expedient that the other provisions contained in this Act should be enacted:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (8) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Teesside Corporation (General Powers) (No. 2) Act 1971.

Division of Act into Parts. 2. This Act is divided into Parts, as follows:—

- Part I.—Preliminary.
- Part II.—Fire precautions.
- Part III.—Trade administration and licensing.
- Part IV.—Cultural activities.
- Part V.—Finance.
- Part VI.—Superannuation.
- Part VII.—Miscellaneous.
- Part VIII.—General.

Interpretation. 3.—(1) Subject to the provisions of this Act and unless otherwise expressly enacted and unless the subject or context otherwise requires the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have in this Act the same respective meanings and in this Act—

“ the Act of 1933 ” means the Local Government Act 1933;

1936 c. 49. “ the Act of 1936 ” means the Public Health Act 1936;

- “ the Act of 1959 ” means the Highways Act 1959;
- “ the Act of 1962 ” means the Town and Country Planning Act 1962; 1959 c. 25.
1962 c. 38.
- “ apparatus ” includes any structure constructed for the lodging therein of apparatus;
- “ the appointed day ” has the meaning assigned to it by section 105 (The appointed day) of this Act;
- “ the borough ” means the county borough of Teesside;
- “ contravention ” includes a failure to comply and “ contra-vene ” shall be construed accordingly;
- “ the Corporation ” means the mayor, aldermen and burgesses of the borough acting by the council;
- “ the council ” means the council of the borough;
- “ the electricity board ” means the North Eastern Electricity Board;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any orders, byelaws, schemes or regulations for the time being in force within the borough;
- “ the gas board ” means the Northern Gas Board;
- “ the generating board ” means the Central Electricity Generating Board;
- “ land ” includes buildings, land covered by water and any rights over land;
- “ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act 1952; 1952 c. 55.
- “ operational land ” in relation to statutory undertakers means land which is used for the purpose of the carrying on of their undertaking and land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings;
- “ the police authority ” has the same meaning as in the Police Act 1964; 1964 c. 48.
- “ public service vehicle ” has the same meaning as in section 117 of the Road Traffic Act 1960; 1960 c. 16.
- “ seashore ” includes any bank, barrier, dune, beach, flat or other land adjacent to the foreshore;

PART I
—cont.

“ the statutory undertakers ” means the electricity board, the Gas Council, the gas board, the generating board and the water undertakers;

“ street ” includes any highway, including a highway over any bridge, and any road, lane, footpath, footway, square, court, alley or passage whether a thoroughfare or not, and includes any part of a street;

“ the water undertakers ” means the Tees Valley and Cleveland Water Board.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

FIRE PRECAUTIONS

A. Storage of flammable material

Interpretation
of this head
of Part II.

4. In this head of this Part of this Act—

“ flammable material ” means—

(a) timber;

(b) (i) firewood;

(ii) wooden boxes, crates, casks or barrels;

(iii) paper or cardboard;

(iv) rags;

(v) motor tyres or cycle tyres;

(vi) natural or synthetic rubber;

or materials of similar character; or

(c) subject to the provisions of section 11 (As to application of provisions to certain stacks) of this Act, materials of the type commonly known as plastics;

“ height ” in relation to any stack means the height measured from the mean level of the ground or floor on or over which it stands to its highest point;

“ premises ” means any premises in the borough but does not include a railway wagon, a ship (as defined in the

Harbours Act 1964), or a mechanically or electrically propelled vehicle or any trailer designed to be attached thereto;

PART II
—cont.
1964 c. 40.

“ stack ” includes a pile;

“ street ” has the same meaning as in the Act of 1959;

“ timber ” includes uncut timber and wood in its natural state;

“ unenclosed or partially unenclosed structure ” means a shed or similar structure (whether of one or more storeys in height) having unprotected areas in its sides exceeding in the aggregate one-half of the total area of its sides, and for the purpose of calculating such areas any window, door, enclosure, shutter or opening, and any part of an external enclosure, not capable of resisting the action of fire for a period of at least half an hour, to be determined as respects such a structure in the borough in accordance with the standards for the time being prescribed by building regulations made under the Public Health Act 1961, shall be regarded as an unprotected area. 1961 c. 64.

5.—(1) (a) The Corporation may give—

Consent to
storage of

(i) a general consent to the use of any premises for the formation or maintenance of any stack of flammable material; or

(ii) a particular consent to the formation or maintenance of any such stack on any premises;

and the Corporation shall not refuse to give any consent applied for under this section except where they consider such a refusal to be necessary for any of the purposes mentioned in paragraph (b) of this subsection.

(b) The Corporation may attach to any consent given under this subsection such terms and conditions as, having regard to the reasonable requirements of the undertaking, trade or business being carried on on the premises, they consider to be reasonably necessary for the purposes of preventing outbreaks of fire, lessening the danger from the spread of fire and facilitating the extinguishing of fire including terms and conditions as to the piling, stacking or storage of flammable material.

(c) Any reference in this head of this Part of this Act to the consent of the Corporation is a reference to a consent (whether general or particular, as the case may be) given under this subsection.

PART II
—cont.

(2) Subject to the provisions of this head of this Part of this Act, no person shall, without the consent of the Corporation given in writing under the foregoing subsection, form or maintain a stack of flammable material on any premises.

(3) (a) Any application for the consent of the Corporation shall be made to the Corporation in writing and the applicant shall supply such plans and particulars in relation to the application as the Corporation may require.

(b) Applications, plans and other documents made or supplied to the Corporation as aforesaid shall on delivery become the property of the Corporation.

(c) If the Corporation have not notified to the applicant their decision on his application within a period of two months from the date of the receipt thereof and of such plans and particulars as they may have required him to supply (or within such longer period as may be agreed in writing between the Corporation and the applicant), the provisions of this head of this Part of this Act shall have effect as if the consent of the Corporation applied for had been given on the last day of that period without any terms or conditions being attached thereto except any such terms and conditions as may have been stipulated in such application.

(4) (a) The Corporation may from time to time, by notice served on any person maintaining a stack of flammable material as respects which the consent of the Corporation has been given, add to or vary as from the specified date any term or condition attached to such consent or may as from the specified date attach such terms and conditions or additional terms and conditions thereto as they consider to be reasonably necessary for any of the purposes mentioned in paragraph (b) of subsection (1) of this section.

(b) In this subsection “the specified date” means such date as may be specified in a notice served under this subsection (not being less than twenty-eight days after the service thereof).

(5) Where the consent of the Corporation, in pursuance of subsection (1) of this section, or paragraph (c) of subsection (3) of this section, has been given in respect of any premises, or where any terms or conditions have been attached to such a consent, then (as the case may be) such a consent shall not be withdrawn, or such a term or condition shall not be added to or varied in pursuance of paragraph (a) of the last foregoing subsection, except—

(a) in pursuance of a request for that purpose made in writing to the Corporation by the occupier of the premises to which such a term or condition relates; or

(b) where, since such a consent was given or such a term or condition was so attached, there has been—

PART II
—cont.

- (i) a change of occupancy of the premises; or
- (ii) some other material change in the circumstances affecting the fire hazards arising at or from the use of the premises.

6.—(1) Any person—

Appeals.

(a) who has applied for the consent of the Corporation and is aggrieved by—

- (i) refusal to give such consent; or
- (ii) any term or condition attached to the consent; or

(b) who is aggrieved by the variation of any term or condition attached to any consent of the Corporation or by any terms or conditions or additional terms or conditions attached thereto in pursuance of a notice served under paragraph (a) of subsection (4) of the last foregoing section;

may within twenty-one days from the date on which such refusal or the attachment or variation of such term or condition is notified to him require the Corporation to deliver to him a certificate in writing stating the grounds for such refusal or the attachment or variation of such term or condition and the person may appeal to the Secretary of State within ten days after the receipt of the certificate.

(2) Every appeal to the Secretary of State under this section shall be made in writing asking that the consent may be granted notwithstanding the refusal of the Corporation, or that such term or condition may not be attached or varied or may be modified in such manner and to such extent as may be set forth in the appeal, and shall be accompanied by the certificate of the Corporation given under the last foregoing subsection.

(3) (a) Where an appeal is brought under this section the Secretary of State may—

- (i) confirm or quash the refusal of the Corporation to give their consent; or
- (ii) confirm, vary or quash any term or condition or any variation of a term or condition which is the subject of the appeal:

Provided that the Secretary of State shall not so vary a term or condition, or variation of a term or condition, as to impose on the appellant a heavier obligation than that imposed by the term or

PART II
—cont.

condition appealed against or, as the case may be, the term or condition whose variation is appealed against.

(b) The decision of the Secretary of State on any appeal under the last foregoing subsection shall have effect, for the purpose of any consent for which application has been made to the Corporation or of any term or condition which was or might have been attached to the consent of the Corporation, as if it had been given or attached (as the case may be) by the Corporation.

(4) Before determining any appeal made to him under this section, the Secretary of State may, if he thinks it necessary or desirable, cause an inquiry and report upon the matter to be made to him by such person as he may appoint for the purpose and shall afford to the appellant and to the Corporation, if either so desire, an opportunity of appearing before and being heard by the person so appointed.

Stack not to
contain
room, etc.

7. No stack of flammable material formed or maintained on any premises shall contain any room, chamber or similar space other than a passage which, if provided, shall be kept unobstructed.

Entry and
inspection of
premises in
connection
with storage
of flammable
material.

8. The power to enter premises conferred by section 287 of the Act of 1936, as amended by section 106 (Application of general provisions of Act of 1936) of this Act shall include power to take samples for analysis from any stack formed on the premises.

Offences
under
sections 5,
7 and 8.

9.—(1) Any person who—

- (a) forms or maintains on any premises a stack of flammable material for which the consent of the Corporation is required under section 5 (Consent to storage of flammable material) of this Act without first obtaining that consent;
- (b) contravenes any term or condition which, in pursuance of subsection (1) or subsection (4) of the said section 5 of this Act, is for the time being attached to a consent given by the Corporation under subsection (1) of the said section 5;
- (c) contravenes the provisions of section 7 (Stack not to contain room, etc.) of this Act;
- (d) wilfully obstructs any person acting in the exercise of his powers under section 8 (Entry and inspection of premises in connection with storage of flammable material) of this Act;

shall be guilty of an offence:

Provided that no offence under paragraph (b) of this subsection shall have been committed by any person—

PART II
—cont.

- (a) until the end of any period within which an appeal under section 6 (Appeals) of this Act may be made by him in respect of the term or condition in question; and
- (b) if such an appeal is duly made, until seven days after the appeal has been withdrawn or determined.

(2) Where any person is guilty of an offence under paragraph (a), (b) or (c) of the foregoing subsection, the court by whom any such person is convicted may make such order as it thinks fit for the removal or modification of the stack in respect of which the offence was committed.

(3) Any person who contravenes an order of the court made under the last foregoing subsection shall be guilty of an offence.

10. Notwithstanding the provisions of section 5 (Consent to storage of flammable material) of this Act, the consent of the Corporation shall not be required under that section—

Consent not
required in
certain
circumstances.

- (a) as respects a stack of flammable material not exceeding 10 feet in height and 400 cubic feet in size, so long as it is separated from any other stack of flammable material on the same premises by an unobstructed space not less than 3 feet in width; or
- (b) as respects any other stack not exceeding 30 feet in height and 48,000 cubic feet in size in the case of a stack of timber, 15 feet in height and 24,000 cubic feet in size in the case of a stack which is composed only of one type of plastics material, or 15 feet in height and 16,000 cubic feet in size in the case of a stack of any other flammable material, so long as each of the following provisions is complied with:—

(i) the horizontal sectional area of the stack does not exceed 2,500 square feet and the stack is not more than 60 feet in length;

(ii) an unobstructed space not less than 12 feet in width is left around three of the four sides of the stack, or if the stack is not rectangular in shape around not less than three-quarters of the length of the perimeter of the stack, and in either case the stack is separated from any other stack of flammable material on the same premises by a distance of not less than 12 feet;

(iii) no part of the stack is nearer than 20 feet to—

(A) the nearest part of any furnace, incinerator or building;

PART II
—cont.

(B) any substance having a flash point lower than 66 degrees Centigrade when tested by any standard method; or

(C) any compressed gas, including a gas liquified or dissolved under pressure;

or nearer than 15 feet to the nearest part of any street; and

(iv) unobstructed access from a street to the stack, being not less than 12 feet in width and in height, is provided and maintained for fire brigade appliances and personnel, and any gateway to such access is not less than 10 feet in width and 12 feet in height:

Provided that where any two or more stacks of timber or (as the case may be) of plastics or any other flammable material are contained within a rectangular area not exceeding 2,500 square feet and not more than 60 feet in length, those stacks shall be treated for the purposes of this paragraph as if they were one stack.

As to
application
of provisions
to certain
stacks.

11.—(1) For the purposes of this head of this Part of this Act a stack shall not be deemed to be a stack of flammable material by reason only of the fact that the material or materials of which the stack is primarily composed are—

(a) supported on wooden pallets; or

(b) contained in sacks or bulk containers.

(2) A stack of material or materials of the type commonly known as plastics shall not be deemed to be a stack of flammable material for the purposes of this head of this Part of this Act if—

(a) in the case of a stack which contains two or more types of plastics, the stack contains no material with a calorific value of 2,500 calories per gram or more; and

(b) in the case of a stack which is composed only of one type of plastics, either—

(i) the plastics material of which the stack is composed has a calorific value of less than 4,500 calories per gram; or

(ii) the plastics material of which the stack is composed is self-extinguishing or of very low flammability or falls within the like or any additional or substituted description which is contained in a British Standard and which is for the time being prescribed in an order made by the Corporation after consultation with such bodies representing the interests affected as they may think fit;

and any order made under sub-paragraph (ii) of this paragraph may be revoked or varied by a subsequent order so made.

PART II
—cont.

(3) The Secretary of State, after consultation with the Corporation and such bodies representing the interests affected as he may think fit, may direct the Corporation to make an order under sub-paragraph (b) (ii) of the last foregoing subsection in such form as he may think fit, and the Corporation shall comply with any such direction.

(4) In subsection (2) of this section—

“ British Standard ” means a British Standard published by the British Standards Institution;

“ self-extinguishing or of very low flammability ”, in relation to plastics material, means that the material would properly be reported as self-extinguishing or (as the case may be) of very low flammability if subjected to the appropriate test for that purpose prescribed in the last published edition of British Standard 2782: Part V: method 508.

12.—(1) The foregoing provisions of this head of this Part of Savings and this Act shall not apply to any stack of flammable material in transitional any building, but for this purpose an unenclosed or partially provisions. unenclosed structure shall be deemed not to be a building.

(2) Until 1st January, 1973, it shall not be necessary for any stack of flammable material on premises in use at the date of the passing of this Act for the piling, stacking, or storage of flammable material and situated in the borough to be formed or maintained in accordance with the provisions of this head of this Part of this Act.

(3) (a) Where by reason of the provisions of the last foregoing subsection a stack of flammable material on any premises is not until 1st January, 1973, required to be formed or maintained in accordance with the provisions of this head of this Part of this Act, the occupier of those premises may, before 1st September, 1972, submit to the Corporation an application in writing that section 5 (Consent to storage of flammable material) of this Act shall not have effect in relation to those premises until such date after 1st January, 1973, but not being later than 1st January, 1974, as he may specify in that application, being a date which is in his opinion reasonable having regard to the need to modify, by reason of the passing of this Act, the operations of any undertaking, trade or business being carried on on those premises.

(b) The Corporation may, by notice served on the occupier of any premises who has submitted an application under the foregoing paragraph and within a period of two months from the date of the receipt of that application—

(i) approve the application and the date specified therein;

PART II
—cont.

- (ii) approve the application subject to the substitution for the date specified therein of such other date as the Corporation may consider to be reasonable in the circumstances; or
- (iii) refuse to approve the application if they consider such refusal to be reasonable in the circumstances;

and, if the Corporation have not notified the applicant of their decision on his application within the said period of two months, the foregoing provisions of this head of this Part of this Act shall have effect as if the approval of the Corporation applied for under this subsection had been given on the last day of that period.

(c) Any applicant aggrieved by the terms of a notice served on him by the Corporation under paragraph (b) of this subsection may appeal to the Secretary of State on the ground that the Corporation have unreasonably refused to approve the application in the form in which it was submitted by him and section 6 (Appeals) of this Act shall, with any necessary modifications, apply for the purposes of such an appeal against a refusal to give a consent under subsection (1) of section 5 (Consent to storage of flammable material) of this Act.

B. General

Firemen's
switches for
luminous
tube signs and
ventilation
systems.

13.—(1) In this section “ apparatus ” means—

- (a) apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding 650 volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation;
- (b) except in relation to shop premises (within the meaning of the Offices, Shops and Railway Premises Act 1963) apparatus consisting of an electrically operated ventilation system, other than any local ventilation system for a particular process, in premises with an area exceeding 10,000 square feet.

1963 c. 41.

(2) As from the appointed day, apparatus in the borough to which this section applies shall be provided with a cut-off switch (on the low-voltage side of the transformer, if any); and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the Corporation may impose to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than twenty-eight days before work is begun to install apparatus to which this section applies, the consumer

shall give notice to the Corporation showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

PART II
—cont.

(4) Where apparatus to which this section applies has been installed before the appointed day, the consumer shall, not less than fourteen days before the appointed day, give notice to the Corporation—

(a) in the case of apparatus already provided with a cut-off switch (on the low-voltage side of the transformer, if any), showing where the switch is placed and how it is coloured or otherwise marked;

(b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the Corporation as required by subsection (3) or subsection (4) of this section, the proposed, or, as the case may be, actual, position, colouring or marking of the switch shall be deemed to satisfy the requirements of the Corporation unless, within fourteen days from the date of the service of the notice, the Corporation have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers for a fireman's emergency switch shall for the purposes of this section be deemed to satisfy the requirements of the Corporation.

(7) A person aggrieved by a counter-notice served by the Corporation under subsection (5) of this section may appeal to a magistrates' court; and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) The owner or the occupier of premises where apparatus is installed which does not comply with subsection (2) of this section shall be guilty of an offence.

(9) A person who fails to give notice as required by subsection (3) or subsection (4) of this section shall be guilty of an offence.

(10) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations 1937, or any regulations that may be made under section 60 of the Electricity Act 1947.

1947 c. 54.

(11) This section shall not apply to apparatus installed on or in premises, or any part of premises, in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force:

PART II
—cont.

Provided that where any luminous tube sign or ventilation system to which, but for this subsection, this section would apply is proposed to be fitted on or in any such premises, the owner or occupier thereof shall, before such apparatus is fitted, give notice under subsection (3) of this section to the Corporation informing them of the position in which it is proposed to place the cut-off switch.

Building
plans: access
for fire
brigade.

14.—(1) Subject to the provisions of subsection (3) of this section, where plans for the erection of a building are in accordance with building regulations deposited with the Corporation, the Corporation shall reject the plans if they show—

- (a) that the building will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be effectively fought; or
- (b) that the building will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be effectively fought.

(2) Subject as aforesaid, where plans for the extension of a building are in accordance with building regulations deposited with the Corporation, the Corporation shall reject the plans if they show—

- (a) that the extension will be such as to affect the adequacy of the means of access by the fire brigade to the building and that the building as extended will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be effectively fought; or
- (b) that the extension will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be effectively fought.

(3) This section shall not apply in relation to the erection or extension of a building in pursuance of a planning permission given under the Act of 1962.

(4) In this section “access by the fire brigade” means access by members of one or more fire brigades and their appliances and references to a neighbouring building are, in relation to a neighbouring building for the erection, alteration or extension of which plans have been passed, references to the neighbouring building as erected, altered or extended in accordance with those plans.

(5) If the Corporation reject the plans under the authority of this section, the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(6) Any question arising under this section between the Corporation and the person by whom, or on whose behalf, plans are deposited as to whether the Corporation ought to pass the plans may, on the application of that person, be determined by a magistrates' court.

(7) In this section "building" includes a structure.

15.—(1) The occupier of any part of a building to which this section applies which after the appointed day is used or intended to be used for the storage for the purposes of sale or trade of any substances to which this section applies (in this section referred to as "the storage part of the building") shall give notice to the Corporation of such use or intention to use, as the case may be, and such notice shall be given—

Parts of
buildings used
for storage of
flammable
substances.

(a) in the case of any part of a building which is so used immediately before the appointed day, within twenty-one days after the appointed day; and

(b) in the case of any part of a building which after the appointed day is intended to be so used, not less than twenty-one days before such user takes place.

(2) The Corporation may, if they are of the opinion that such storage—

(a) is in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or

(b) is in such manner as to be liable to cause fire or explosion;

by counter-notice require the occupier of any part of a building in respect of which a notice has been served under subsection (1) of this section to provide within such reasonable period as may be specified in the counter-notice—

(i) adequate means for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;

(ii) means of ready escape in case of fire from the storage part of the building and any other part of the building being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with or is adjacent to or constructed at a higher or lower level than the storage part of the building;

(iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) (a) The power to enter premises conferred by section 287 of the Act of 1936, as amended by section 106 (Application of

PART II
—cont.

general provisions of Act of 1936) of this Act, shall include power to purchase and test samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any kind of test of a sample taken by an authorised officer of the Corporation by virtue of this section shall not be admissible as evidence in any legal proceedings under this section including an appeal under subsection (6) of this section unless the following requirements have been complied with: that is to say, the said officer shall, forthwith after taking the sample, notify to the occupier of the building his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

(4) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building is unable to execute works for the purpose of complying with a requirement of the Corporation under this section; or
- (b) considers that the owner of the building or any other person having an interest therein should contribute towards the cost of the execution of works as aforesaid and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with such requirement or, as the case may be, to direct the owner of the building or any other person who appears to the court to have an interest therein to contribute towards the cost of such works as aforesaid such an amount as appears to the court in all the circumstances of the case to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(5) (a) If after the requirements of the Corporation under subsection (2) of this section have been complied with and a certificate to that effect has been granted by the Corporation any material extension or material structural alteration of the building to which the certificate relates is made the Corporation may serve a further counter-notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the Corporation shall amend the certificate or grant a new certificate in respect of the building but if anything required to be provided in accordance with a further counter-notice served under this subsection is not provided within such reasonable time as may be specified in the further counter-notice the Corporation may cancel the certificate granted under this subsection in respect of the building.

(6) (a) Any person aggrieved by a requirement of the Corporation under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the counter-notice is not reasonably sufficient for the purpose of complying with the requirements of the counter-notice.

(b) Any person aggrieved by the refusal of the Corporation to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

(7) Any person who contravenes the provisions of this section shall be guilty of an offence.

(8) This section applies to—

- (a) any building which is used, or intended to be used, partly for the storage for the purposes of sale or trade of any substance to which this section applies and partly as a habitable room or a place in which any person works, if the part used as a habitable room or a place in which a person works communicates directly or indirectly with or is adjacent to or constructed at a higher or lower level than the storage part of the building;
- (b) (i) any substance which is gaseous at a temperature of 1 degree Centigrade at atmospheric pressure and which is flammable; and
- (ii) any other substance which when tested by a method approved by the Secretary of State gives off a flammable vapour at a temperature of less than 65 degrees Centigrade:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

- (A) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act 1928 apply; or 1928 c. 32

PART II
—cont.

- (B) not more than fifty gallons of any substance which does not when tested by a method approved by the Secretary of State give off a flammable vapour at a temperature of less than 32 degrees Centigrade and which is stored in metal, glass or glazed earthenware containers securely stoppered and in good condition and containing not more than five gallons each; or
- (C) any substance which does not when tested by a method approved by the Secretary of State give off a flammable vapour at a temperature of less than 32 degrees Centigrade and which is stored in separate metal, glass or glazed earthenware containers securely stoppered and in good condition and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(9) In this section “building” where used in relation to the storage of substances therein includes the curtilage of the building.

(10) Nothing in this section shall apply to—

1961 c. 34.
1963 c. 41.

- (a) premises which are subject to the Factories Act 1961 or the Offices, Shops and Railway Premises Act 1963 or any regulation or order made thereunder;
- (b) any building, or part of a building by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster or other apparatus for or in connection with the supply of gas.

Prescription
of signs, etc.,
to be used
on certain
buildings.

16.—(1) The Corporation may in relation to any substance likely to involve special hazard to persons engaged in normal duties of fire fighting—

- (a) prescribe standard uniform signs or symbols or warning notices in a form approved by the Secretary of State clearly indicating the nature of the substance and the existence of danger to persons so engaged;
- (b) by notice require the occupier of any part of a building used for the manufacture or storage of the substance to affix, within such reasonable time as is specified in the notice, and thereafter keep fixed in a conspicuous position or positions in or on the part of the building used for such manufacture or storage, the appropriate sign, symbol or notice.

(2) Any person who contravenes the requirements of the Corporation under this section shall be guilty of an offence.

(3) Nothing in this section shall authorise the Corporation to require the generating board or the electricity board to affix to any building on operational land any sign, symbol or notice.

17. If it appears to the Corporation that for the purpose of preventing fire or explosion in any such building in the borough as is referred to in subsection (5) of section 59 of the Act of 1936 as amended by section 26 (Means of ingress to and egress from certain buildings) of this Act or for the purpose of preventing injury or danger to persons resorting thereto—

PART II
—cont.

Preventing fire
in public or
other
buildings.

- (a) the apparatus or fittings for lighting or heating the building require alteration; or
- (b) the arrangement of the chairs and seating requires alteration; or
- (c) any floor requires strengthening in order to prevent overloading; or
- (d) any of the materials from which any fireplaces, flues, chimney vents or other like parts of such building are constructed are unsuitable;

the Corporation may by notice require the owner or occupier of the building to make such provision in regard to the matters aforesaid as may be necessary:

Provided that—

- (i) for the purposes of this section any fireplace, flue, chimney vent or other like part of such building which complies with building regulations for the time being in force made under section 4 of the Public Health Act 1961 shall not be deemed to have been constructed of unsuitable materials; 1961 c. 64.
- (ii) this section shall not apply to premises in respect of which a licence, under the Public Health Acts Amendment Act 1890 or the Cinematograph Acts 1909 and 1952 or the Theatres Act 1968, is for the time being in force; 1890 c. 59. 1968 c. 54.
- (iii) nothing in this section shall apply to premises which are subject to the Factories Act 1961 or the Offices, Shops and Railway Premises Act 1963, or any regulation or order made thereunder. 1961 c. 34. 1963 c. 41.

18.—(1) For the purpose of preventing or reducing danger from fire in any building in the borough to which this section applies and for the purpose of preventing injury or danger to persons resorting thereto, the Corporation, if the owner or occupier of the building fails to comply with any reasonable requirements of the Corporation with respect to any of the matters referred to in paragraphs (a) to (e) of this subsection, shall, by notice, require the owner or occupier of the building—

Fire
precautions
in certain
buildings.

- (a) to provide satisfactory and sufficient means of ingress thereto and egress therefrom and passages and gangways including illuminated signs;

PART II
—cont.

- (b) to alter any installation, apparatus and fittings for the lighting and heating of the building, or to provide any new installation, apparatus or fittings for this purpose;
- (c) to fix securely in a satisfactory position the chairs and seating accommodation;
- (d) to secure that open fires or stoves shall be suitably and adequately protected;
- (e) to provide and maintain adequate fire-fighting equipment and appliances in the building:

Provided that—

- (i) any such requirements shall have regard to the number of persons likely to resort to the building at any one time;
- (ii) a notice shall not be served under this subsection if the Corporation are satisfied that no such requirements are necessary;
- (iii) no requirement shall be made under—

(A) paragraph (b) of this subsection to alter any installation of oil-burning equipment as defined in section 19 (Oil-burning equipment) of this Act installed or placed in compliance with byelaws made under that section;

(B) paragraph (e) of this subsection to provide and maintain fire-fighting equipment in any boiler-house or fuel store in which such equipment is provided in compliance with byelaws made under the said section 19.

(2) A notice under the preceding subsection may require the owner or occupier of the building to execute such work and to make such provision in regard to the matters aforesaid as may be necessary.

(3) The provisions of section 290 of the Act of 1936 shall apply to notices given under this section as they apply to the notices mentioned in subsection (1) of that section and in their application to notices given under this section shall have effect as if the following paragraph were added to subsection (3) thereof:—

“(g) where the notice requires the owner or occupier of part of the premises in question to execute works for the benefit of the owner or occupier of any other part of the premises, that the owner or occupier of that other part ought to bear, or contribute towards, the expenses of executing the works required.”;

and subsection (5) of the said section 290 shall have effect accordingly as if after the reference to “paragraph (f)” there were included a reference to “paragraph (g)”.

(4) The person having the control of any building to which this section applies shall take steps to secure that the means of ingress thereto and egress therefrom and the passages and gangways shall, while persons referred to in subsection (7) of this section are assembled in the building, be kept free and unobstructed, except in so far as the Corporation may otherwise approve and, if he fails to do so, shall be guilty of an offence:

Provided that this subsection shall not apply in relation to any building if the person having the control of that building has no control over the use of the part of the building used as a place of assembly by persons and for the purposes referred to in subsection (7) of this section.

(5) If the Corporation are satisfied that, for the purposes of subsection (1) of this section, immediate action should be taken in the case of a building to which this section applies, they may apply to a magistrates' court and the court may make such temporary order as it thinks fit for the closing of the building or for restricting its use.

(6) Any member of the fire brigade of the borough who is duly authorised for the purpose shall, on producing if so required some duly authenticated document showing his authority, have a right to enter at all reasonable times any building to which this section applies—

- (a) for the purpose of ascertaining whether there is, or has been, in or in connection with the building, any contravention of the provisions of this section, or of any order made by the court under this section;
- (b) for the purpose of ascertaining whether or not circumstances exist which would authorise the Corporation to take any action under this section.

(7) This section applies to any building within the borough which is used, whether occasionally or not, as a place of assembly by persons (whether or not the persons are charged for admission) who are members of any club, organisation or other body (not being a club registered under the Licensing Act 1964) and which 1964 c. 26. in furtherance of the objects or purposes for which the club, organisation or body was formed is used by the members thereof for the purpose of entertainment, dancing or the playing of games:

Provided that this section shall not apply to any building of a description specified in subsection (5) of section 59 of the Act of 1936 during the time the building is used for the purpose or purposes therein described or any building to which paragraph (a) of section 71 of the Act of 1936 applies or to a private house or to premises in respect of which there is in force for the time being a justices' on-licence within the meaning of subsection (2) of section 1 of the said Act of 1964.

PART II
—cont.

(8) Nothing in this section shall apply to a building in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force, provided that the provisions of the licence are complied with during the time the building is being used for the purposes described in subsection (7) of this section.

Oil-burning
equipment.

19.—(1) As from the appointed day any person intending to install or place oil-burning equipment in any building in the borough, whether erected before or after the passing of this Act, or on any land in the borough shall give not less than fourteen days' notice to the Corporation of his intention so to do.

(2) (a) The Corporation may make byelaws for securing that, in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws, proper arrangements are made for preventing or reducing danger from fire.

(b) Byelaws made under this section may include provisions—

(i) prescribing in connection with the installation or placing of oil-burning equipment in any such building or on any such land as aforesaid the works, apparatus and fittings and fire-fighting appliances to be provided, and the mode of arrangement of any such works, apparatus, fittings and appliances; and

(ii) empowering the Corporation, if they are satisfied that proper arrangements will be made for preventing or reducing danger from fire, to approve the installation or placing of any oil-burning equipment notwithstanding that it does not comply with the appropriate specifications for such equipment contained in the byelaws.

(3) (a) Any oil-burning equipment installed or placed in accordance with plans and specifications submitted to, and passed by, the Corporation shall, for the purposes only of this section, be deemed to be approved by the Corporation as complying with the appropriate specification for such equipment contained in the byelaws in respect of all matters shown in the plans and specifications so passed.

(b) If the Corporation do not, within two months from the submission of plans and specifications of any oil-burning equipment under this subsection, notify the person by whom they were submitted of the rejection or passing of the said plans and specifications, they shall be deemed to have passed them.

(4) (a) Any person aggrieved by the refusal of the Corporation to approve the installation or placing of any oil-burning equipment under any byelaw made under sub-paragraph (ii) of paragraph (b) of subsection (2) of this section may, within twenty-one days from the receipt of notification of the refusal, appeal to the Secretary of State.

(b) Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal or may vary the decision of the Corporation against which the appeal is made.

(c) The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the Corporation given under the byelaws.

(5) (a) Any person who installs oil-burning equipment in any building or on any land in the borough without giving notice to the Corporation in accordance with subsection (1) of this section shall be guilty of an offence.

(b) Any person who contravenes any byelaw made under subsection (2) of this section shall be liable to a fine not exceeding fifty pounds, and if—

(i) that person after conviction of the contravention; or

(ii) any other person after notice of the conviction has been served on him by the Corporation;

uses the oil-burning equipment in contravention of that byelaw he shall be liable to a fine not exceeding five pounds for each day on which he so uses it.

(6) (a) In this section—

“oil-burning equipment” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catch-pits and any other equipment used for or in connection with the heating of the boiler;

“boiler” means a boiler, furnace, heater, oven or similar plant;

“storage tank” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler;

“apparatus” and “fittings” includes pipes and pipe fittings, taps, valves, pumps, gauges, vessels, fans and filters.

(b) References in this section to the installation or placing of oil-burning equipment in any building or on any land shall be construed as including the installation or placing of oil-burning equipment which is partly in a building and partly on land outside the building.

(7) Nothing in this section or any byelaws made thereunder shall apply to—

(a) the installation of any oil-burning equipment within the curtilage of a private dwelling-house not comprised in a block of flats; or

(b) any oil-burning equipment if the storage tank or tanks supplying, or designed or adapted to supply, oil to the boiler has or have a total capacity not exceeding 750 gallons; or

PART II
—cont.

- (c) the installation of oil-burning equipment in any building in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force; or
- (d) the installation of any oil-burning equipment by the British Railways Board, the generating board, the electricity board, the Gas Council or the gas board for the purposes of their respective undertakings:

Provided that the exemption conferred by this paragraph shall not extend to buildings used as offices or showrooms other than buildings used as a railway station.

- (8) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the Factories Act 1961 or the Offices, Shops and Railway Premises Act 1963 apply on the coming into force in relation to those premises of regulations made under either of those Acts and relating to the same subject-matter as this section.

Underground
parking
places.

20.—(1) Where plans of any proposed work deposited with the Corporation in pursuance of building regulations include proposals for the construction, alteration or extension of an underground parking place or the alteration of a building for use as an underground parking place the Corporation may, notwithstanding anything in section 64 of the Act of 1936, reject the plans unless there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire or explosion being proposals relating to all or any of the following matters:—

- (a) the construction of the underground parking place and the approaches thereto and the materials to be used in such construction;
- (b) the means of ventilation of the underground parking place;
- (c) the electrical and mechanical and heating equipment in the underground parking place;
- (d) the provision of a satisfactory emergency lighting system in connection with the underground parking place;
- (e) fire protection, fire alarms and fire-fighting equipment and appliances in connection with the underground parking place;
- (f) the means of ingress to and egress from the underground parking place including illuminated exit signs;

(g) the provision of adequate means for preventing flammable substances from being admitted to any drainage system forming part of the underground parking place;

(h) the means of access to the underground parking place for fire brigade appliances and personnel.

(2) The provisions of subsection (2) of section 64 and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the Corporation and a person who has executed or proposes to execute any work—

(a) whether the work is such as is mentioned in subsection (1) of this section; or

(b) whether the Corporation ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

that question may, on the application of that person, be referred to the Secretary of State for determination, and the Secretary of State shall determine any question submitted to him under paragraph (a) of this subsection or, as the case may be, may direct the Corporation to treat as satisfactory the said proposal or the said proposal as modified by him.

(4) If, after plans of any underground parking place have been passed by the Corporation in consequence of any proposals made under subsection (1) of this section, it appears to the Corporation that any such proposal has not been carried into effect or is not being observed or any equipment or appliances provided in accordance with the plans is not being maintained, the Corporation may by notice to the owner or occupier of the underground parking place prohibit its use as an underground parking place until the proposal has been carried into effect or is being observed.

(5) Any person on whom a notice has been served under subsection (4) of this section who uses the underground parking place or permits it to be used as an underground parking place without giving effect to or securing the observance of any proposal specified in the notice shall be guilty of an offence.

21.—(1) Without prejudice to the provisions of section 20 (Underground parking places) of this Act, the Corporation may by notice to the owner or occupier of any underground parking place in the borough which is first brought into use after the passing of this Act require compliance with such conditions as to the use of the underground parking place as may be specified in the notice for the purpose of preventing or reducing danger from fire or

Further provision as to underground parking places.

PART II
—cont.

explosion therein, and in the case of any underground parking place as aforesaid in respect of which plans are not deposited with the Corporation in pursuance of building regulations, the Corporation may by notice to the owner or occupier thereof require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (b) to (h) of subsection (1) of the said section 20 as the Corporation think fit.

(2) Any person on whom a notice under this section has been served, who contravenes any requirements specified in the notice, shall be guilty of an offence.

(3) A person on whom a notice under this section has been served may within twenty-one days of the service of the notice appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person the Corporation shall deliver to him a certificate signed by the town clerk stating the grounds on which the Corporation have made any requirement under this section, and where such person appeals to the Secretary of State against such requirement the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given, or as soon as possible after the receipt by such person of the certificate.

(5) On consideration of any such appeal the Secretary of State may, if he thinks fit, confirm, modify, alter or annul any requirement made by the Corporation under this section.

Interpretation
and powers
of entry for
purposes of
last two
foregoing
sections.
1928 c. 32.

22.—(1) In the last two foregoing sections the expression “underground parking place” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by the Corporation or the Secretary of State under section 2 or section 3 of the Petroleum (Consolidation) Act 1928 is in force or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space, either alone or in addition to any other facility or service, for motor cars or other vehicles and of which any part of the floor is situated more than 4 feet below the surface of the ground adjoining such building or part of a building.

(2) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of the last two foregoing sections shall be provisions which it is the duty of the Corporation to enforce.

23.—(1) The provisions of section 60 of the Act of 1936 in their application to the borough shall have effect as if—

PART II
—cont.

Provision of
means of
escape from
fire in certain
buildings.

- (a) in paragraph (a) of subsection (4) of that section the words “in whole or in part used as a flat or flats” were substituted for the words “let in flats”;
- (b) in paragraph (b) of subsection (4) of that section the words “boarding school” were omitted and the words “old persons’ home” were inserted after the words “children’s home”; and
- (c) in paragraph (c) of subsection (4) of that section the word “school” were inserted after the word “shop” and the words “for persons employed on the premises” were omitted:

Provided that nothing in the said section 60 as having effect in accordance with the provisions of this subsection shall apply to premises with respect to which a fire certificate is required under section 29 of the Offices, Shops and Railway Premises Act 1963. 1963 c. 41.

(2) (a) The Corporation may by notice require the person having control of a building to which the said section 60, as amended by subsection (1) of this section, applies (other than a house divided into flats) to maintain and keep unobstructed such means of escape as are specified in the notice and any person who contravenes such a notice shall be guilty of an offence.

(b) A person served with a notice under this subsection may appeal to a magistrates’ court on any of the following grounds:—

- (i) that the requirement is not justified by the terms of this subsection;
- (ii) that there has been some informality, defect or error in, or in connection with, the notice;
- (iii) that the requirement of the notice is unreasonable in character or extent or is unnecessary.

24.—(1) Where plans of a building or of an alteration or extension of a building are in accordance with building regulations deposited with the Corporation, and the building, or, as the case may be, the building as altered or extended, will be a building to which this section applies, the Corporation may reject the plans unless they show that the building, or, as the case may be, the building as altered or extended, will be—

Fire
precautions
in certain
large
buildings.

- (a) provided with all such means of escape therefrom in case of fire as may be reasonably required; and
- (b) fitted with automatic fire alarms and a fire extinguishing system or with such alarms or such system to the satisfaction of the Corporation:

Provided that—

- (i) nothing in paragraph (a) of this subsection shall apply to a factory to which section 40 (Means of escape in case

PART II
—cont.

1961 c. 34.

1963 c. 41.

of fire) of the Factories Act 1961 applies or to buildings to which section 59 (Exits, entrances, etc., in the case of certain public and other buildings) of the Act of 1936 applies, or to premises to which the Offices, Shops and Railway Premises Act 1963 applies or to premises to which building regulations imposing requirements as to the provision of means of escape in case of fire apply;

- (ii) nothing in paragraph (b) of this subsection so far as it relates to the provision of fire alarms, shall apply to a factory to which subsection (7) of section 48 of the said Act of 1961 applies or to premises to which section 34 of the said Act of 1963 applies, nor so far as it relates to the provision of a fire extinguishing system, shall the said paragraph apply to a factory to which subsection (1) of section 51 of the said Act of 1961 applies or to premises to which the said Act of 1963 applies.

(2) The person proposing to erect, alter or extend or cause to be erected, altered or extended any building to which this section applies shall, when submitting plans and particulars in accordance with building regulations, deposit with the Corporation particulars showing how it is proposed to comply with the requirements of paragraphs (a) and (b) of subsection (1) of this section.

(3) The Corporation at any time within a period of two months after the deposit of the particulars, irrespective of any decision under building regulations—

(a) may refuse to approve them; or

(b) may approve them subject to such conditions (if any) as they think fit;

in either of which cases they shall give to the person who deposited the particulars notice stating their reasons for refusal or for the imposition of conditions. If within that period the Corporation fail to give such notice they shall be deemed to have approved the said particulars.

(4) If any building to which this section applies contravenes any of the requirements of paragraphs (a) or (b) of subsection (1) of this section the Corporation, without prejudice to their right to take proceedings for penalties in respect of the contravention, may by notice require the person erecting, altering or extending or causing to be erected, altered or extended the building, either to pull down and remove it or if he so elects to, effect such alterations therein as may be necessary in order to comply with the said requirements.

(5) Any person who erects or causes to be erected, altered or extended a building in contravention of any of the provisions of this section shall be guilty of an offence.

(6) Any person aggrieved by a requirement of the Corporation or a condition subject to which approval of particulars is given

by the Corporation or a refusal by the Corporation to approve particulars under subsections (1) and (3) of this section may appeal to a magistrates' court.

PART II
—cont.

(7) This section applies to any building or proposed building or part of a building in the borough of a cubic extent exceeding 250,000 cubic feet being a building which is within Group IV (office), Group V (shop), Group VI (factory), or Group VIII (storage and general) contained in the Table to Regulation E2 of the Building Regulations 1965 unless it is divided by compartment walls or compartment floors constructed in accordance with building regulations, in such a manner that no division of a building or proposed building, or part of a building, is of a cubic extent exceeding 250,000 cubic feet, but does not apply to any building—

- (i) in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force; or
- (ii) exempted from the provisions of Part II of the Act of 1936 with respect to building regulations by section 71 (c) of that Act:

Provided that this section shall not apply to a building erected before the passing of this Act unless and until after the passing of this Act a structural alteration or extension is made in or to the building or a material change (as defined in subsection (2) of section 62 of the Act of 1936) takes place in the purposes for which the building is used.

(8) Any reference in this section to plans deposited in accordance with building regulations shall be construed as including a reference to any sections, specifications and written particulars deposited with the plans in accordance with the regulations or this section.

25.—(1) Within the borough unless the Corporation consent no building shall be erected with a storey or part of a storey at a greater height than 80 feet if the area of the building exceeds 10,000 square feet:

Further precautions against fire in certain high or large buildings.

Provided that the Corporation shall not withhold consent under this subsection if—

- (a) they are satisfied that, having regard to the proposed use to which the building is to be put, proper arrangements will be made and maintained for preventing or reducing danger from fire in the building; or
- (b) the building, being a shop or departmental store to which the British Standard Code of Practice known as CP3: Chapter IV: Part 2 (1968) or the code for the time being

PART II
—cont.

in force applies, will, when erected, comply with the recommendations of that part of that code of practice relating to the planning, construction and equipment of such a building.

(2) In giving their consent under this section the Corporation may attach thereto conditions relating to the provision and maintenance of proper arrangements for preventing or reducing danger from fire in the building or part of the building.

(3) Any person who is aggrieved by a decision of the Corporation under this section to withhold consent or to attach conditions to a consent may within twenty-one days from the receipt of notification of the decision appeal to a magistrates' court.

(4) Any person who contravenes the provisions of subsection (1) of this section or any condition attached to a consent given under this section shall be liable to a fine not exceeding fifty pounds and if—

- (a) that person after conviction of the contravention; or
- (b) any other person after notice of the conviction has been served on him by the Corporation;

uses the building without the consent of the Corporation or in contravention of any condition attached to a consent given under this section he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(5) The measurement of the height of any such building or part of a building as is mentioned in this section shall be calculated in accordance with the provisions of Regulation E3 (a) of the Building Regulations 1965.

(6) Nothing in this section shall apply to any building exempted from the provisions of Part II of the Act of 1936 with respect to building regulations by paragraph (a) or paragraph (c) of section 71 of that Act.

Means of
ingress to
and egress
from certain
buildings.

26.—(1) The provisions of section 59 of the Act of 1936 in their application to the borough shall have effect as if—

- (a) in paragraph (b) of subsection (5) thereof the words “covered market or sale room” were inserted after the word “warehouse” and as if the word “ten” were substituted for the word “twenty”:

Provided that nothing in this section shall apply to premises in respect of which there is a justices' licence for the sale of intoxicating liquor for consumption on the premises or to premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force; and

(b) in paragraph (d) of the said subsection (5) the words "and any premises used for giving instruction in dancing" were added at the end of that paragraph.

PART II
—cont.

(2) The provisions of subsection (2) of the said section 59 in their application to the borough shall be construed so as to enable the Corporation to require that such first-aid fire appliances as the Corporation deem necessary shall be installed in premises to which the said section applies other than premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force:

Provided that any notice served by the Corporation under the said subsection (2) requiring the installation of first-aid fire appliances may be served on the owner or the occupier of the building.

(3) The provisions of subsection (2) of this section shall cease to apply in relation to any premises to which the Factories Act 1961 or the Offices, Shops and Railway Premises Act 1963 applies on the coming into force in relation to those premises of regulations made under those Acts and relating to the same subject-matter as the said subsection. 1961 c. 34.
1963 c. 41.

27.—(1) Any duly authorised fire brigade officer of the Corporation (on producing, if so required, some duly authenticated document showing his authority) may at all reasonable times enter upon, inspect and examine any premises in the borough used by a club registered under the Licensing Act 1964 as regards any matter affecting fire risks or the provision or maintenance of adequate fire-fighting equipment or appliances; but the town clerk shall not so authorise a fire brigade officer unless in his opinion special reasons exist making it necessary that the premises should be inspected in relation to any matter affecting fire risks. Fire precautions in registered clubs. 1964 c. 26.

(2) Any person obstructing a fire brigade officer in the exercise of the power conferred by this section shall be guilty of an offence.

28.—(1) The Corporation may make byelaws prescribing the times and the days of the week during which trade refuse may be set fire to or burned in any yard or garden in the borough. Byelaws as to burning of refuse.

(2) Any person who contravenes any byelaw made under this section shall be guilty of an offence.

29. In its application to the borough, section 29 of the Public Health Act 1961 shall have effect as if, in subsection (5) thereof, there were inserted the following paragraph:— Fire precautions and demolition of buildings.

"(bb) to take such precautions as the Corporation may reasonably require with regard to the burning on the site of materials or rubbish or of any structure;" 1961 c. 64.

PART II
—cont.

Byelaws for
prevention of
fire at fairs
and circuses.
1961 c. 64.

30. The Corporation may make byelaws under section 75 of the Public Health Act 1961 for preventing or reducing danger from or risk of fire in or to caravans, stands, stalls and structures used or intended to be used for the purposes of or in connection with any fair or circus and may by such byelaws—

- (1) prescribe the space to be kept free between the bodies of any two such caravans used or intended to be used for sleeping accommodation and between the body of any such caravan so used or intended to be used, and any such stand, stall or structure;
- (2) prohibit or restrict the placing of any flammable material in the vicinity of any such caravan;
- (3) prohibit or restrict the storage and use of flammable gases other than for domestic use;

and such byelaws shall in all circumstances be deemed to be properly made for the preservation of public safety:

Provided that no byelaws made under this section shall apply to any caravan, stand, stall or structure erected for the purposes of or in connection with a fair or circus provided by the Scout Association or the Girl Guides Association or by members of an organisation established by either of such associations in pursuance of their charter.

Saving for
Fire Services
Acts.

31. Nothing in the foregoing sections of this Part of this Act shall affect the operation of the Fire Services Acts 1947 to 1959 or any regulations or orders made thereunder.

Instructions,
lectures, etc.,
on questions
relating to
fire services,
etc.

32.—(1) The Corporation may arrange for—

- (a) the publication of information on questions relating to fire services, fire fighting and precautions for avoiding the occurrence of fires in the borough;
- (b) the delivery of lectures and addresses and the holding of discussions on such questions; and
- (c) the display of pictures, cinematograph films or models or the holding of exhibitions relating to such questions.

(2) The Corporation may prepare, or join in, or contribute to the cost of, the preparation of, pictures, films, models or exhibitions relating to such questions to be displayed or held whether within or outside the borough.

PART III

TRADE ADMINISTRATION AND LICENSING

A. Employment agencies

33.—(1) In this head of this Part of this Act the expression “employment agency” means any agency or registry carried on or represented as being or intended to be carried on (whether for the purpose of gain or reward or not) for or in connection with the employment of persons in any capacity: Definition of employment agency.

Provided that the following shall not be deemed to be employment agencies within the meaning of this head of this Part of this Act:—

- (a) any employment agency conducted by or under the direction and supervision of the Secretary of State under the Employment and Training Act 1948; or 1948 c. 46.
- (b) any youth employment bureau conducted by the Corporation; or
- (c) any employment agency which is carried on exclusively for the purpose of obtaining employment for—
 - (i) persons formerly members of Her Majesty’s naval, military or air forces; or
 - (ii) persons released from a prison or Borstal institution or from an approved school or detention centre;and which is certified for the time being by the Secretary of State to be properly conducted.

(2) The provisions of this head of this Part of this Act shall not apply to an agency for the supply of nurses as defined in section 8 of the Nurses Agencies Act 1957 but this subsection shall not be deemed to except from the provisions of this head of this Part of this Act any business other than for the supply of nurses carried on in conjunction with such an agency. 1957 c. 16.

34. No person shall carry on an employment agency in the borough without a licence from the Corporation authorising him so to do. Employment agencies to be licensed.

35.—(1) A person requiring a licence or the renewal of a licence under this head of this Part of this Act shall make application in writing to the Corporation and shall in the application state— Application for licence.

- (a) his full name;
- (b) his age and nationality;
- (c) his private address or if the application be made by or on behalf of a company, society, association or body the

PART III
—cont.

registered or principal office (if any) of the company, society, association or body and so far as may reasonably be required the names and private addresses of the directors or other persons directly or indirectly responsible for the management of the company, society, association or body;

(d) the name under which and the address at which the employment agency is carried on or proposed to be carried on;

(e) the nature of the employment agency;

(f) whether and if so to what extent he is or has been interested in any other employment agency; and

(g) such information (if any) as the Corporation may reasonably require with respect to the person or premises to be licensed.

(2) The person making an application under this section shall when making the same pay to the Corporation such fee as the Corporation may fix not exceeding—

(a) in respect of an application for the grant of a licence		£6.00
(b) in respect of an application for the renewal of a licence		£3.00

and the fees paid on any application for the grant or renewal of a licence may be retained by the Corporation whether the licence is or is not granted or renewed.

(3) Subject to the foregoing provisions of this section the Corporation may make such regulations as they think fit as to the manner in which and the dates at which applications for a licence or the renewal of a licence under this head of this Part of this Act are to be made or as to the transfer of a licence.

Grant of
licence.

36.—(1) The Corporation shall as soon as reasonably practicable after the receipt of an application under this head of this Part of this Act grant or renew a licence to the applicant to carry on an employment agency of the description and in the name and at the address specified in the application and may attach such conditions thereto as they may consider reasonably necessary for securing the due notification to them of any change in the name or private address of the licensee or in the nature of the business carried on at the address and generally for securing the proper conduct of the employment agency:

Provided that the Corporation may refuse to grant or renew a licence or may revoke a licence granted—

(a) to any person under the age of twenty-one years; or

- (b) to any person who on account of misconduct or for any other sufficient reason is unsuitable to hold the licence; or
- (c) in respect of any premises which are unsuitable for the purposes of an employment agency; or
- (d) in respect of any employment agency which has been or is being improperly conducted; or
- (e) in respect of any employment agency which is being carried on in contravention of the provisions of this head of this Part of this Act or any byelaw made thereunder.

(2) If the Corporation refuse to grant or renew a licence or revoke a licence under this head of this Part of this Act they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days of the receipt of the requirement particulars in writing of the ground or grounds for such refusal or revocation.

(3) (a) Where an application is made for the renewal of a licence and objections have been taken to its renewal, or when it is proposed to revoke a licence, notice to that effect shall at least seven days before the question of renewal or revocation is considered be given to the applicant or holder of the licence and if within three days from the date of receipt of this notice the applicant or holder requires to be heard the application shall not be refused or the licence revoked unless the Corporation have afforded him an opportunity of being heard against the refusal or revocation.

(b) Any notice served under this subsection shall state the objections to renewal or the grounds on which revocation is proposed and shall notify the aforesaid right of being heard and also the effect of subsection (2) of this section and the right of appeal conferred by this section and the time within which such appeal may be brought.

(4) Any person aggrieved by a refusal of the Corporation to grant or renew a licence or by the revocation of a licence under this head of this Part of this Act or by any conditions attached to such a licence may appeal to a magistrates' court.

(5) Every licence granted or renewed as aforesaid shall (unless revoked) be valid for a period of twelve months and no longer.

37.—(1) The Corporation may make byelaws—

Byelaws as to
employment
agencies.

- (a) prescribing the keeping by every person holding a licence under this head of this Part of this Act of books, cards or forms showing the business conducted by him so far as it relates to his employment agency;

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—cont.

- (b) prescribing the entries to be made in connection with that business in such books, cards or forms;
- (c) for preventing fraud and immorality in the conduct of employment agencies; and
- (d) generally for regulating any premises used for the purposes of or in connection with any such agency.

(2) Every person holding a licence under this head of this Part of this Act shall keep exhibited in a suitable place (to be approved by the Corporation) in the premises to which the licence relates a copy of the byelaws made under this section.

Clients'
money.

38.—(1) The Corporation may make byelaws for safeguarding clients' money deposited with or otherwise received by persons carrying on agencies of such descriptions as may be specified in the byelaws, and such byelaws may in particular impose requirements—

- (a) as to the opening and keeping of accounts at banks for clients' money;
- (b) as to the keeping of accounts containing particulars and information as to moneys received, held or paid for or on account of clients;
- (c) for requiring the delivery to the Secretary of State, at such times as may be specified in the byelaws, of reports by accountants qualified for that purpose, being reports in such form and containing such information as may be specified in the byelaws:

Provided that no accountant shall be qualified as aforesaid unless he is a member of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Institute of Chartered Accountants of Scotland;

The Association of Certified and Corporate Accountants;

The Institute of Chartered Accountants in Ireland;

Any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of section 161 (1) (a) of the Companies Act 1948 by the Secretary of State for Trade and Industry;

1948 c. 38.

but a Scottish firm may be so appointed if each of the partners therein is qualified to be so appointed.

(2) Any person who contravenes any byelaw made under this section shall be guilty of an offence.

(3) In this section "client", in relation to a person carrying on an agency, means a person who seeks or has obtained employment by availing himself of the services of that person.

PART III
—cont.

39. The power to enter premises conferred by section 287 of the Act of 1936, as amended by section 106 (Application of general provisions of Act of 1936) of this Act shall include power to inspect the books, cards and forms kept in connection with any employment agency carried on there.

Entry and inspection of premises in connection with employment agencies.

40.—(1) Any person who within the borough—

Penalties for certain offences under this head of this Part of Act.

(a) carries on an employment agency without a licence under this head of this Part of this Act, or otherwise than in accordance with the terms and conditions of such a licence, or obtains a licence or the renewal of a licence by wilful misrepresentation, or by wilfully omitting to give any particulars which are required by this head of this Part of this Act to be given; or

(b) refuses to permit any officer of or person duly authorised by the Corporation to enter or inspect any such premises as are referred to in the last preceding section or the books, cards or forms kept in connection with the employment agency carried on therein or obstructs any such officer or person in the execution of his duties under this head of this Part of this Act; or

(c) acts or offends against any byelaw made under section 37 (Byelaws as to employment agencies) of this Act or any of the provisions of this head of this Part of this Act for the contravention of which no penalty is by this section specifically provided;

shall be guilty of an offence and in respect of any conviction for an offence in connection with any byelaw made under paragraph (c) of subsection (1) of section 37 (Byelaws as to employment agencies) or under section 38 (Clients' money) or paragraph (a) of subsection (1) of this section of this Act, if he is licensed a magistrates' court may instead of, or in addition to, imposing a fine, order the suspension or cancellation of his licence and of the licence of the premises in which the offence was committed if they are occupied by him.

(2) A court ordering the revocation of a licence under this section may suspend the operation of the order until the fourteen days prescribed by subsection (1) of section 84 of the Magistrates' Courts Act 1952 for giving notice of appeal to quarter sessions 1952 c. 55. have expired:

Provided that if notice of appeal is given within the said fourteen days an order made under this section shall be suspended until the appeal is finally determined or abandoned.

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—cont.

(3) Section 288 of the Act of 1936 shall not apply to this head of this Part of this Act.

B. Window cleaners

Window
cleaners to
be licensed.

41. As from the appointed day no person shall within the borough—

- (1) carry on whether whole time or part time the trade of window cleaner; or
- (2) perform the duties of window cleaning while employed by a person carrying on the trade of window cleaner;

without a licence from the Corporation authorising him so to do.

Applications
for and
provisions as
to window
cleaning
licences.

42.—(1) An application for a licence under this head of this Part of this Act—

- (a) shall be made in writing to the Corporation;
- (b) shall be made by or on behalf of the person requiring the licence;
- (c) may be made by such person on behalf of any person employed by him or proposed to be employed by him as aforesaid;
- (d) shall be in such form as the Corporation shall from time to time require;
- (e) shall be signed by the applicant; and
- (f) shall contain such information as the Corporation may reasonably require with respect to the applicant and every person employed by him or proposed to be employed by him as aforesaid.

(2) Every such licence shall be in force for one year only from the date of such licence or until the next general licensing day in case any such general licensing day be appointed by the Corporation (which they are hereby authorised to appoint) and the town clerk shall enter such licences in a register to be provided and kept by the Corporation for that purpose.

Grant of
window
cleaning
licences.

43. The Corporation shall as soon as reasonably practicable after the receipt of an application under this head of this Part of this Act grant or renew a licence to the applicant to carry on the trade of window cleaner or, as the case may be, to perform the duties of window cleaning.

Penalties
under this
head of this
Part of Act.

44. On and after the appointed day—

- (a) any person who carries on the trade of window cleaner;
and

- (b) anyone employed by such person who performs the duties of window cleaning;

PART III
—cont.

without a licence granted or renewed under section 43 (Grant of window cleaning licences) of this Act shall be guilty of an offence.

C. Tattooists and hairdressers

45.—(1) As from the appointed day a person shall not carry on the business of a person who tattoos or offers to tattoo members of the public on premises in the borough occupied by him unless he is registered with the Corporation under this section and the premises are so registered. Registration of tattooists.

(2) On application in that behalf made to the Corporation by any person for registration of the applicant or of any premises and (if the application relates to premises) on his furnishing them with particulars of the premises the Corporation shall register the applicant or the premises and issue to the applicant a certificate of registration.

(3) This section does not apply where a registered medical practitioner, or a person working under his direction, tattoos a person for medical reasons.

(4) The Corporation may make byelaws for the purpose of securing—

- (a) the cleanliness of premises in the borough registered under this section and of the instruments, towels, materials and equipment used therein; and
- (b) the cleanliness of persons working in such premises in regard to both themselves and their clothing.

(5) Any person who carries on business in contravention of subsection (1) of this section shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding fifty pounds, or, in the case of a second or subsequent conviction, to a fine not exceeding one hundred pounds.

(6) Any person who contravenes any byelaw made under subsection (4) of this section shall be guilty of an offence, and if he is registered a magistrates' court by which he is convicted may instead of, or in addition to, imposing a fine, order the suspension or cancellation of his registration and of the registration of the premises in which the offence was committed if they are occupied by him.

(7) A magistrates' court ordering the suspension or cancellation of registration under the last foregoing subsection may suspend the operation of the order until the fourteen days prescribed by subsection (1) of section 84 of the Magistrates' Courts Act 1952 1952 c. 55. for giving notice of appeal to quarter sessions have expired:

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—cont.

Provided that if notice of appeal is given within the said fourteen days an order made under this subsection shall be suspended until the appeal is finally determined or abandoned.

(8) Where the registration of any person is cancelled by order of a magistrates' court under subsection (6) of this section—

- (a) he shall within seven days deliver up to the Corporation the cancelled certificate of registration and if he fails to do so he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding five pounds and to a daily fine not exceeding one pound; and
- (b) he shall not again be registered by the Corporation under this section except in pursuance of a further order of a magistrates' court made on his application.

(9) The occupier of premises registered under this section shall keep a copy of the said byelaws and of the certificate of registration displayed in the premises and, if he fails to do so, he shall be guilty of an offence.

(10) In this section "tattoo" shall mean the insertion into the skin of any colouring material designed to leave a permanent mark.

Hairdressers.

46.—(1) As from the appointed day a person shall not carry on the business of a hairdresser or barber in the borough on premises occupied by him unless he is registered by the Corporation under this section and the premises are so registered.

(2) On application in that behalf made to the Corporation by any person for the registration of the applicant or of any premises, and, if the application relates to premises, on his furnishing them with particulars of the premises, the Corporation shall register the applicant or the premises and issue to the applicant a certificate of registration.

(3) Any person who carries on business in contravention of subsection (1) of this section shall be guilty of an offence.

(4) The occupier of premises registered under this section shall keep a copy of the certificate of registration and of the byelaws made by the Corporation under section 77 of the Public Health Act 1961 displayed in the premises, and, if he fails to do so, he shall be guilty of an offence.

1961 c. 64.

*D. Control of clubs and cafés*Interpretation
of this head
of this Part
of Act.

47.—(1) In this head of this Part of this Act—

"night café" means—

- (a) any premises in the borough which are kept open for public refreshment at any time between the hours of 11 o'clock in the evening and 5 o'clock in the morning; or

(b) any premises which are used by a club, organisation or body and which, if they were kept open to the public, would fall within paragraph (a) of this definition; or

(c) a club, organisation or body which, in furtherance of the objects or purposes for which the club, organisation or body was formed, is used by the members thereof for the purpose of entertainment, dancing or the playing of games in any premises;

but does not include any premises—

(i) in respect of which there is in force for the time being—

(A) a justices' on-licence within the meaning of subsection (2) of section 1 of the Licensing Act 1964;

1964 c. 26.

(B) a licence granted by the Corporation under the Private Places of Entertainment (Licensing) Act 1967;

1967 c. 19.

(C) a licence for the public performance of stage plays, or a cinematograph exhibition;

(ii) which are kept open wholly or mainly as an ancillary amenity to a bona fide hotel, guest house or lodging house;

(iii) so long as they are being used by a club which is subject to the provisions of the Licensing Act 1964 or a club provided or maintained by the Corporation;

(iv) so long as they are being used exclusively and bona fide by a club, organisation or body—

(A) registered as a charity under section 4 of the Charities Act 1960 or not required to be registered under that section by virtue of the provisions of subsection (4) thereof; or

1960 c. 58.

(B) for the purpose of a yacht club, gymnasium or swimming bath or of playing badminton, fives, racquets, squash, bingo, tombola, ten-pin bowling, billiards, chess, dominoes, bridge, whist or any game similar to any of those games; or

(v) so long as they are being used exclusively and bona fide as a canteen forming part of a factory or office which is subject to the Factories Act 1961 or the Offices, Shops and Railway Premises Act 1963;

1961 c. 34.
1963 c. 41.

“registered” means registered with the Corporation under this section, and “registration” shall be construed accordingly;

PART III
—cont.

“specified drug” means any substance which the Corporation, with the approval of the Secretary of State, by resolution determine should, from a date to be fixed by the resolution, be included among the drugs to which section 50 (Offences in connection with conduct of night cafés) of this Act applies;

“young person” means a person of not more than eighteen years of age.

(2) For the purposes of a resolution relating to a specified drug, the provisions of subsections (2) and (3) of section 105 (The appointed day) of this Act shall (with any necessary modifications) apply to any such resolution and the date fixed thereby.

**Registration
of premises.**

48.—(1) Subject to the provisions of this head of this Part of this Act, on and after the appointed day—

(a) no premises in the borough shall be used, whether occasionally or not, for the purposes of a night café unless they are registered;

(b) if any owner, occupier or other person concerned in the conduct or management of premises in the borough uses them as a night café or permits the premises to be so used he shall, unless the premises have been so registered with the Corporation and the registration remains in force, be guilty of an offence.

(2) The Corporation may refuse to register or renew the registration of any premises for use as a night café if they are satisfied that—

(a) the premises are not structurally suitable for the purpose;

(b) there is a likelihood of nuisance being caused by reason of the conduct, management or situation of the premises or the character of adjacent properties;

(c) the persons concerned or intended to be concerned in the conduct or management of the premises as a night café are such that young persons resorting to the premises are likely to be depraved or corrupted;

(d) the premises are not provided with satisfactory means of lighting, sanitation and ventilation;

(e) the premises are not safe for such use or the means of heating the premises are not safe;

(f) proper precautions against fire on the premises have not been taken;

(g) satisfactory means of escape in case of fire and suitable fire-fighting appliances have not been provided on the premises; or

- (h) the applicant has, within the period of five years immediately preceding the date of the application to the Corporation, been convicted of an offence under subsection (3) of this section, section 50 (Offences in connection with conduct of night cafés) or the provisions of sections 287 and 288 of the Act of 1936 as amended by section 106 (Application of general provisions of Act of 1936) of this Act;

and shall refuse to register or renew the registration of any premises for use as a night café if they are satisfied that a disqualification order is for the time being in force under section 100 of the Licensing Act 1964 or subsection (4) of section 11 of the 1964 c. 26. Late Night Refreshment Houses Act 1969 in respect of the 1969 c. 53. premises or of any person concerned or intended to be concerned in the conduct or management of the premises as a night café.

(3) (a) The Corporation may, on registering or renewing the registration of any premises for use as a night café, impose conditions as to—

- (i) the maintenance of order and safety;
- (ii) the number of persons who may be allowed to be on the premises at any time;
- (iii) the taking of proper precautions against fire, and the maintenance in proper order of means of escape in case of fire, fire-fighting appliances and means of lighting, sanitation and ventilation of the premises;
- (iv) the maintenance in safe condition of the premises and of means of heating the premises;
- (v) the hours of opening and closing the premises for use as a night café.

(b) Any person concerned in the conduct or management of a night café who contravenes any condition imposed under this subsection, or who knew or had reasonable cause to suspect that such a condition was being contravened by some other person, shall be guilty of an offence:

Provided that, if the person against whom proceedings are brought under this paragraph proves that he has used all due diligence to secure that the condition in question was complied with, he shall be acquitted of the offence under this paragraph.

(4) Before registering any premises for use as a night café under this section the Corporation shall consider—

- (i) the suitability of the premises for such use having regard to the matters referred to in paragraphs (a), (f) and (g) of subsection (2) of this section; and

PART III
—*cont.*

- (ii) the conditions (if any) that should be imposed in relation to such matters if the premises are to be registered for such use;

and the Corporation shall consider those matters before renewing the registration of the premises if in the opinion of the Corporation there has been any material change in the circumstances affecting those matters or any of them.

(5) The Corporation may at any time revoke the registration of any premises on any ground upon which, pursuant to subsection (2) of this section, they are authorised or required to refuse to register or renew the registration of those premises, or if they are satisfied that any condition imposed under subsection (3) of this section has not been complied with.

(6) An application for registration or renewal of registration of any premises under this section shall be made in writing to the Corporation by the owner or occupier of the premises to which the application relates and every such application shall state—

- (a) the address or situation of the premises to which the application relates;
- (b) the name and address of the applicant and his trade or calling during the six months preceding the application;
- (c) such other information regarding the premises to be registered, the persons concerned or intended to be concerned in the conduct or management of the premises and the manner in which the premises are proposed to be used as the Corporation may reasonably require;

and the applicant shall supply such plans of the premises as the Corporation may reasonably require, and any application made or plans supplied to the Corporation as aforesaid shall on delivery become the property of the Corporation.

(7) Any person making application for registration or renewal of registration of any premises under this section shall, when making application, pay to the Corporation in respect thereof a fee of one pound.

(8) (a) Any person making application for registration or renewal of registration of any premises under this section shall give public notice of the application (identifying the premises) in such form as the Corporation may prescribe—

- (i) by displaying the notice on or near the premises, in a place where it can conveniently be read by the public, for fourteen days beginning with the date of the application; and

- (ii) by advertisement in a local newspaper circulating in the borough not later than seven days after the date of the application;

and any person who fails to give any such notice as is required by this paragraph shall be guilty of an offence.

(b) Any person objecting to an application for registration or renewal of registration of any premises under this section shall give notice in writing of his objection to the Corporation and shall serve a copy of such notice upon the applicant, stating in general terms the grounds of the objection, not later than twenty-one days after the date of the application, and when considering the application the Corporation shall take such objection into account.

(9) Before refusing to register or renew the registration of any premises or revoking the registration of any premises the Corporation shall give to the person applying for registration or renewal of registration or in whose name the premises are registered an opportunity of appearing before and of being heard by a committee of the council and, if so required by him, the Corporation shall within seven days of their decision give to him a statement of the grounds upon which it was based.

(10) Any person aggrieved by the refusal of the Corporation to register or renew the registration of any premises under this section, or by the revocation of any such registration or by any condition imposed under this section, may, within twenty-one days from the date on which such refusal or revocation, or the imposition of the condition, is notified to him, appeal to a magistrates' court; and on any such appeal the court may by order, confirm or set aside such refusal or revocation, or confirm, vary or set aside any such condition, or impose any condition which the Corporation would have been entitled to impose by virtue of this section, and the Corporation shall give effect to such order accordingly.

(11) Registration under this section shall, unless previously revoked, remain in force for such period not exceeding thirteen months as may be fixed by the Corporation on the grant of the licence.

49. It shall be lawful for any person who—

- (a) immediately before the appointed day was using any premises as a night café; and

Saving for
existing
night cafés.

PART III
—cont.

(b) had before that day duly applied for the registration of those premises under the last foregoing section;

to continue to use those premises as a night café until he is informed of the decision with regard to his application.

Offences in
connection
with conduct
of night cafés.
1964 c. 64.
1965 c. 15.

50. If a night café is conducted in a disorderly manner, or has been habitually used for an unlawful purpose or for indecent displays or as a resort of criminals or prostitutes, or if any drug to which the Drugs (Prevention of Misuse) Act 1964 or the Dangerous Drugs Act 1965 applies, or any specified drug, is sold, supplied or otherwise distributed on the premises by a person to any other person resorting thereto, any person concerned in the conduct or management of the night café and any other person who knew or had reasonable cause to suspect that the premises were so used or so conducted as aforesaid or that such sale, supply or distribution was taking place on the premises or let the premises or otherwise made the premises available to any person by whom an offence in connection with such use has been committed shall be guilty of an offence:

1956 c. 76.

Provided that nothing in this section shall apply to the administration of a drug or a specified drug for the purposes of medical treatment or in accordance with the directions of a medical practitioner registered pursuant to the Medical Act 1956.

Application of
Late Night
Refreshment
Houses Act
1969.

1969 c. 53.

51. Notwithstanding the reference in subsection (1) of section 47 (Interpretation of this head of this Part of Act) of this Act to the hours of 11 o'clock in the evening and 5 o'clock in the morning, where premises are for the time being registered with the Corporation under section 48 (Registration of premises) of this Act the person who keeps the premises shall be deemed to have been duly licensed in respect of those premises under the provisions of the Late Night Refreshment Houses Act 1969 in respect of the period between the hours of 10 o'clock in the evening and 5 o'clock in the morning or, if an earlier hour than 5 o'clock in the morning is for the time being prescribed for the closing of the premises in a condition imposed under sub-paragraph (v) of paragraph (a) of subsection (3) of the said section 48, such earlier hour, and the provisions of the said Act shall apply accordingly.

As to
exemption
of certain
premises.

52.—(1) If in the opinion of the council it becomes unnecessary that premises of any particular class or description should remain subject to the provisions of this Part of this Act, they may by resolution determine that as from a date to be fixed by the resolution such class or description of premises shall be

exempted from such provisions, and the provisions of subsections (2) and (3) of section 105 (The appointed day) of this Act shall (with any necessary modifications) apply to any such resolution and the date fixed thereby.

PART III
—cont.

(2) If, in the opinion of the council, after the date so fixed by any such resolution, having regard to any relevant circumstances any particular premises exempted from the provisions of this Part of this Act by virtue of such a resolution should again become subject to the said provisions, they may by a further resolution determine that those premises shall again become subject to the said provisions as from a date to be fixed by such further resolution, and the provisions of subsections (2) and (3) of the said section 105 shall (with any necessary modifications) apply to any such further resolution and the date fixed thereby.

PART IV

CULTURAL ACTIVITIES

53. The Corporation may acquire for exhibition or for use as a feature in connection with any development or redevelopment scheme carried out or being carried out by them in the borough works of sculpture or other objects of artistic, scientific or historical interest and may provide for the renovation, renewal, replacement or recasting of any such works or objects so acquired or otherwise in their possession or care. **Acquisition and repair of sculptures, etc.**

54.—(1) The Corporation may enter into and carry into effect agreements or arrangements— **Acquisition of works of art produced to order.**

(a) for the taking and purchase of any photograph; or

(b) for the production to their order of any picture or sculpture or other work of art and for the purchase thereof by the Corporation when completed.

(2) The payments to be made by the Corporation under this section shall not in any financial year exceed the equivalent of the product of a rate of five-twelfths of a penny as ascertained or estimated for the purposes of Part II of the General Rate Act 1967. **1967 c. 9.**

55. Any specimen, work of art or other object in the possession of the Corporation for the purposes of any museum or art gallery provided by them may be used by them for educational purposes **Power to lend objects for educational purposes.**

PART IV:
—cont.

and circulated to schools, colleges and other educational establishments in the borough or loaned to any such establishment for such period and subject to such conditions as the Corporation may determine:

Provided that the power conferred upon the Corporation by this section shall not be exercised in such a manner—

- (a) as to be at variance with a trust subject to which the object is held by the Corporation without the consent of the donor or the trustee or the Secretary of State; or
- (b) as to contravene a covenant or condition subject to which a gift or loan of an object has been accepted by the Corporation without the consent of the donor or other person entitled in law to the benefit of the covenant or condition or the Secretary of State.

**Disposal of
unsuitable
specimens.**

56.—(1) The Corporation may sell, lend, exchange or give or otherwise dispose of any specimen, work of art, book or document—

- (a) vested in them which in the opinion of the Corporation is not required for exhibition or use in any museum, art gallery, library or other building of the Corporation; or
- (b) coming into the custody of the Corporation after being left at any museum, art gallery, library or other building of the Corporation for the purpose of identification or otherwise and which has been in the possession of the Corporation for a period of not less than three months.

(2) The Corporation may make arrangements by way of sale, loan, exchange or gift with any person being the owner of any museum, art gallery or library for the transfer to that person of any specimen, work of art, book or document vested in the Corporation which in the opinion of the Corporation is more suitable for exhibition or use in the museum, art gallery or library of that person than in a museum, art gallery, library or other building of the Corporation.

(3) Where any object referred to in paragraph (a) of subsection (1) of this section has become vested in the Corporation by virtue of a gift or bequest—

- (a) the Corporation shall, if reasonably practicable, consult with the donor or with the personal representatives or trustees of the donor before exercising the powers of this section; and

(b) the powers conferred by this section shall not, during a period of thirty-five years commencing on the date on which it became vested, be exercisable as respects that object in any manner inconsistent with any condition attached to the gift or bequest, except with the consent of the donor or the personal representatives or trustees of the donor.

(4) Where any object referred to in paragraph (b) of subsection (1) of this section is left in their custody, the Corporation—

(a) shall at that time give notice of the effect of the said paragraph (b) to the person leaving the object; and

(b) shall, if reasonably practicable, consult with that person, or his personal representatives, before exercising the powers of this section.

(5) Any moneys received by the Corporation in the exercise of the powers of this section as respects any object which has become vested in the Corporation by virtue of a gift or bequest shall be applied by them in the purchase of specimens, works of art, books or documents or paid into the art fund maintained by them under section 15 of the Public Libraries and Museums Act 1964 except in a case in which such moneys exceed fifty pounds 1964 c. 75. and are subject to a trust the terms of which prevent them being so applied or paid.

57.—(1) The Corporation may publish or contribute to the publication of, and sell or dispose of works of scholarship, of works of bulletins, journals, official guides, periodicals, leaflets and documents of historical or literary interest having a local connection etc. or relating to the functions of the Corporation.

(2) Nothing in this section shall be deemed to authorise the Corporation to do any act or thing in relation to any work or other subject-matter in or in relation to which copyright may subsist except with the consent of the person in whom the sole right to do or authorise the doing of that act or thing in relation to that work or subject-matter is for the time being vested under the law relating to copyright.

58.—(1) It shall be lawful for the Corporation—

(a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Corporation think fit and to let such rooms and to make reasonable charges for admission to such lectures; and

Provision of
lectures, etc.

PART IV
—cont.

- (b) to provide suitable rooms for art exhibitions and to provide or permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provided that in connection with the powers contained in this section—

- (i) the sum to be expended by the Corporation in any one financial year on the provision of lectures; and
(ii) the sum to be expended by the Corporation in any one financial year on the provision of art exhibitions;

1967 c. 9.

shall not in either case exceed the equivalent of the product of five-twelfths of a penny rate as ascertained or estimated for the purpose of Part II of the General Rate Act 1967 in addition to any moneys received by the Corporation under the provisions of this section.

(2) The Corporation may use or allow to be used or let any part of any public library provided by them, and not at the time required for the purpose of a library, for public and other meetings and for lectures, exhibitions and performances for or in connection with the advancement of art, education, drama, science, music or literature.

(3) The Corporation may provide and sell or authorise the provision and sale of programmes of any lectures, exhibitions or performances given in pursuance of this section.

(4) Nothing in this section shall be taken to dispense with the consent of a Minister of the Crown to any appropriation, lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

PART V

FINANCE

Power to
borrow.

59.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

PART V
—cont.

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

60. Without prejudice to section 292 of the Act of 1936, and to that section as applied by any other enactment, where under any enactment the Corporation are empowered to execute works at the request of, or in default of, the owner or occupier of any premises, and to recover from him the expenses incurred by them in so doing, they may include in, and recover as part of, the expenses such additional sum, not exceeding 5 per cent. of the cost of the works, as they think fit in respect of their establishment charges.

61.—(1) The Corporation may make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged, and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loan all or any of the provisions of this Act, and the Act of 1933, in regard to the borrowing and repayment of money, with or without modification, and may make provision in regard to all matters incidental to the objects aforesaid.

(2) Any scheme made by the Corporation under this section shall have no force or effect until confirmed by the Secretary of State who may confirm the same, with or without modifications, and when so confirmed the scheme shall, notwithstanding any enactment, order or sanction to the contrary, have full force and effect.

(3) Nothing in any scheme made under this section shall prejudice or affect the security, rights and remedies of any

PART V
—cont.

mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock or bonds existing at that time, except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Secretary of State may be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Secretary of State separate consolidations may be made of all or any of the loans included under such general headings.

(5) Any scheme confirmed under this section may be altered, extended, amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

(6) In this section “statutory borrowing power” means any power, whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity, rentcharge, rent or other security representing or granted in lieu of consideration money for the time being existing under any enactment or sanction of any government department made or given or to be made or given by authority of any enactment, but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Act of 1933.

Amendment
of power to
issue bonds.
1963 c. 46.

62. The provisions of section 7 of the Local Government (Financial Provisions) Act 1963 and Schedule 1 to that Act in their application to the Corporation shall have effect as if the following paragraph were substituted for paragraph 1 in that schedule:—

“ 1.—(a) Subject to the provisions of sub-paragraph (b) of this paragraph bonds issued under this Act shall—

- (i) bear interest at such rate as the Corporation may determine at the time of the issue of the bonds;
- (ii) be issued for such period as the Corporation may determine being not less than a period of one year.

(b) For the purposes of sub-paragraph (a) of this paragraph—

- (i) bonds issued to and held continuously by building societies and persons and bodies of such other

classes as the Corporation may, with the consent of the Treasury, from time to time determine shall not be deemed to have been issued for a period of less than one year by reason only of the fact that the holder of such a bond has the right to claim premature repayment under a stress clause;

- (ii) a bond shall not be deemed to have been issued for a period of less than one year by reason only of the fact that it is issued on the condition that it may be repaid upon the death of the holder or in any other case for the purpose of relieving hardship to the holder.”.

63.—(1) The Corporation may close any transfer books or registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days, or any shorter consecutive period, next before the date on which interest on the authorised securities to which such transfer book or register relates is payable. Closing of registers.

(2) The persons who, on the date on which the transfer book or register is closed, are entered therein as holders of any security of the class to which such transfer book or register relates, shall be entitled to the interest next payable thereon.

64. If any money is payable by the Corporation to any employee (other than wages or salary) or creditor or the holder of any authorised security and the person entitled to such payment is a minor the receipt of the guardian shall be a sufficient discharge to the Corporation. Receipt in case of minors, etc.

65.—(1) Where the holder of an amount of any authorised security occupies an office or official position, his official description may be entered in the register in lieu of his name and where in relation to an amount of an authorised security of any description any such official description is so entered, an instrument of transfer and an instrument containing directions with respect to the payment of interest on that amount shall if executed by the person for the time being occupying that office or position be as effectual as if his name were entered as the holder of that amount. Designation of holders of authorised securities in register.

(2) Notwithstanding anything in subsection (1) of this section, the Corporation shall not be required—

- (a) to enter in the register any designation or description which appears to them unreasonably long or elaborate; or

PART V
—cont.

(b) to enter in the register both the name of a holder of an authorised security and any such official description as could under subsection (1) of this section be so entered in lieu of his name.

(3) Where the official description in the register is that of trustee, the official description so entered shall not constitute notice of any trust for the purposes of section 209 of the Act of 1933.

(4) In this section “register” means the register of any authorised security kept by or on behalf of the Corporation.

Reserve funds. 66.—(1) The Corporation may at any time create a reserve fund in respect of any undertaking, department or service of the Corporation from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and accumulating the same until the fund so provided amounts to the maximum for the time being prescribed by the Corporation, not exceeding a sum equal to one-fifth of the aggregate capital expenditure on the undertaking, department or service or such higher sum as may be approved by the Secretary of State.

(2) The reserve fund provided under this section may, in respect of the undertaking, department or service to which it relates, be applied—

- (a) in making good any deficiency at any time happening in the income of the Corporation from the undertaking, department or service; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking, department or service; or
- (c) in or towards the payment of the cost of providing, renewing, improving or extending any works, buildings, machinery, vehicles, plant or conveniences, and equipment and appliances in connection therewith, office machinery, furniture, fittings and appliances forming part of the undertaking, department or service or otherwise for the benefit thereof;

and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) All moneys for the time being standing to the credit of a reserve fund shall (in so far as those moneys are not for the time being required for the purposes of the fund) be invested in any security in which the Corporation are for the time being authorised by any enactment to invest moneys.

(5) If and when the Corporation establish a reserve fund under this section in respect of any such undertaking, department or service as aforesaid, any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the Corporation in respect of that undertaking, department or service and in existence at the date of the passing of this Act shall be carried to and form part of the reserve fund provided under this section in respect of that undertaking, department or service.

67.—(1) The Corporation may establish a fund to be called Insurance
“ the insurance fund ” with a view to providing a sum of money fund.
which shall be available for making good such losses, damages,
costs and expenses as may from time to time arise in respect
of such risks as may from time to time be specified in a resolution
of the council (in this section referred to as “ the specified
risks ”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) When the insurance fund shall amount to the prescribed amount the Corporation shall discontinue the appropriations to the fund under subsection (4) of this section but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue such appropriations until the fund be restored to the prescribed amount and if at any time the Corporation reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed such moneys as are in excess of the prescribed amount shall be transferred to the general rate fund and if any sums shall have been appropriated from the housing revenue account under the next succeeding subsection to the housing revenue account in such proportions as the Corporation consider equitable and any moneys so transferred to the general rate fund shall be apportioned between the several accounts of that fund in such proportions as the Corporation consider equitable.

(4) The Corporation may from time to time appropriate to the insurance fund such sums as they think fit from the appropriate

PART V
—cont.

account or accounts in the general rate fund and if they think fit from the housing revenue account and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance:

Provided that any appropriation from the housing revenue account shall not exceed the proportion of the total yearly payments which in the opinion of the Corporation properly relates to the specified risks arising from the purposes for which that account is kept.

(5) All moneys for the time being standing to the credit of the insurance fund shall (in so far as those moneys are not for the time being required for the purposes of the fund) be invested in any security in which the Corporation are for the time being authorised by any enactment to invest moneys.

(6) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Corporation in respect of the specified risks which are payable out of the insurance fund in the order of the dates on which such losses, damages, costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses the Corporation may with the sanction of the Secretary of State borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of the preceding paragraph of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and if any sums shall have been appropriated from the housing revenue account under subsection (4) of this section the housing revenue account in such proportion as the Corporation consider equitable and shall be charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings, departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(7) If and when the Corporation establish an insurance fund under this section any moneys standing to the credit of any insurance fund provided by the Corporation and in existence at the date of the passing of this Act shall be carried to and form part of the insurance fund provided under this section.

(8) Any covenant or obligation binding on the Corporation to insure against any risk shall (except in so far as the terms of such covenant or obligation otherwise specifically provide) be deemed to be satisfied by a resolution of the council under subsection (1) of this section and that risk shall be one of the specified risks.

(9) In this section—

“insurance office” means—

- (i) an insurance company; or
- (ii) an underwriter being a member of an association of underwriters;

“the prescribed amount” means such sum as may from time to time be prescribed by the council.

68.—(1) The Corporation may establish a fund to be called “the research and development fund” to which they may pay—

Research and
development
fund.

(a) an initial contribution, not exceeding the equivalent of the product of a rate of five-sixths of a penny as ascertained or estimated for the purpose of Part II of the General Rate Act 1967;

1967 c. 9.

(b) such other sums from the revenue of the general rate fund as they may direct not being moneys directed by law to be applied to any other purpose, including any lump sum, if necessary, to bring the balance of the fund to an amount equal to the product of a rate of five-sixths of a penny as defined under paragraph (a) of this subsection at 31st March in any year.

(2) The Corporation may apply the moneys in the fund to finance any research and development which they resolve to be connected with the initiation, variation, advancement, management or administration of the functions and services either actual or proposed in connection with which the Corporation are, or may become, responsible within the borough.

Provided that the amount of any expenditure incurred by the Corporation under this section shall not in any financial year exceed the equivalent of the product of five-twelfths of a penny rate for the borough.

(3) All moneys for the time being standing to the credit of the research and development fund shall (in so far as those moneys are not for the time being required for the purposes of the fund) be invested in any security in which the Corporation are for the time being authorised by any enactment to invest moneys.

PART V
—cont.Power to
advertise
advantages of
borough.

69.—(1) The Corporation may incur expenditure in advertising and making known the advantages, facilities and amenities afforded by the borough as an industrial, commercial or tourist centre, place of architectural, historical or cultural interest or holiday resort in any manner which the Corporation may think fit and without prejudice to the generality of the foregoing provisions of this section they may for that purpose—

- (a) combine with any other organisation, company or person; and
- (b) employ such persons, firms or companies as they think fit.

1931 c. 17.
1936 c. 48.

(2) Any expenditure under this section shall be separate from and additional to the expenditure, if any, of the Corporation under the Local Authorities (Publicity) Act 1931 or the Health Resorts and Watering Places Act 1936.

Expenses of
public
ceremonies,
entertainment,
etc.

70.—(1) The Corporation may make reasonable payments for or in connection with—

- (a) the arrangement and conduct of ceremonies relative to or arising out of any statutory functions of the Corporation;
- (b) the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

1956 c. 36.

(2) The provisions of the Local Authorities (Expenses) Act 1956 shall have effect in their application to the Corporation as if in paragraph (b) of section 1 thereof, after the words “distinguished persons”, there were inserted the words “residing in or”.

Recovery of
rates from
certain owners.

71.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charges on such hereditament, the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments. The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

PART V
—cont.

(3) This section shall not apply to any hereditaments to which section 55 of the General Rate Act 1967 applies by virtue of a 1967 c. 9. resolution of the council.

72. For the purposes of section 61 of the General Rate Act 1967, the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

As to
recovery of
rates from
tenants and
lodgers.

73. Notwithstanding anything contained in any other enactment—

Collection and
recovery of
water rates,
rents or
charges.

(a) any water rate, rent or charge payable to the Corporation as agent for the water undertakers by any person in respect of a supply of water to any premises in the borough may be demanded and collected together with the general rate payable by that person;

(b) in respect of premises within the borough the same book may be used for the water rates, rents or charges and the general rate;

(c) any such water rate, rent or charge may (without prejudice to any other right or remedy of the Corporation) be recoverable in the same manner and subject to the same provisions as apply to the recovery of the general rate.

74. The provisions of section 109 of the General Rate Act 1967 relating to the sending or service of demand notes shall apply to demand notes relating to any charges made in connection with any undertaking, department or service of the Corporation and those provisions shall be in substitution for any other provisions relating to the sending or service of such demand notes.

Service of
demand notes,
etc.

75. Notwithstanding anything in any enactment or in any rule of law or otherwise to the contrary, where it is agreed between the Corporation and a person at any time entitled to any mortgage or bond granted by the Corporation to extend the time for the repayment of the principal moneys secured by such mortgage or bond or to alter the rate of interest payable by the Corporation on the principal moneys so secured and not repaid, or both to extend

Modification
of mortgages
and bonds
by endorse-
ment under
hand.

PART V
—cont.

such time and to alter such rate of interest, effect may be given thereto by an endorsement in writing under the hands of such person (or in the case of a corporate body, by the duly authorised representative of that body) and of the borough treasurer or his duly authorised representative endorsed by way of supplemental deed or bond to the deed by which such mortgage or bond was originally granted, and the provisions of any such endorsement shall be deemed to be incorporated in the said deed and shall, as from the date specified in such endorsement, operate and take effect accordingly.

Expenses of
executing
demolition
orders.

1957 c. 56.

76.—(1) Any expenses adjudged to be payable to the Corporation consequent upon the exercise of their powers under subsection (1) of section 23 or subsection (3) of section 44 of the Housing Act 1957 shall, until recovered, be a charge on the premises in respect of which the expenses were incurred and on all estates and interests therein.

1925 c. 20.

(2) The Corporation shall for the purpose of enforcing a charge under this section have all the powers and remedies under the Law of Property Act 1925, and otherwise of mortgagees by deeds having powers of sale and lease, of accepting surrenders of leases and of appointing a receiver.

Certain vehicles
deemed to be
property of
Corporation
for
third-party
insurance
purposes.

1960 c. 16.

77. Any vehicle for the time being in the custody and control of the Corporation and in charge of a person in their employment or any other person for whose actions they are responsible shall be deemed to be a vehicle owned by the council of a county borough for the purposes of Part VI of the Road Traffic Act 1960 (which relates to compulsory insurance or security against third-party risks arising out of the use of motor vehicles).

Apportion-
ment of
expenses in
case of joint
owners.

78. Where, under the provisions of any enactment, the Corporation execute any works of common benefit to two or more buildings belonging to different owners, and those expenses or any part of them, are recoverable by the Corporation, they shall (if no provision is made in the enactment, or in any other enactment applied thereto or incorporated therein, as to the incidence of the expenses so recoverable) be paid by the owners of such buildings in such proportions as shall be determined by the Corporation, or, in case of dispute, by a magistrates' court.

Amendments
to Teesside
Corporation
Act 1969.

1969 c. xiv.

79. The provisions of section 8 (Investment of fund moneys in acquisition, etc., of land) of the Teesside Corporation Act 1969 shall be amended in the following manner:—

(a) subsection (1) shall have effect as if for the words "land situated in the United Kingdom or any interest in such land and used or to be used for residential, commercial or industrial purposes" there were substituted the words

“immovable property of any tenure or kind in the United Kingdom, elsewhere than in the borough, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement”;

[PART V
—cont.]

- (b) subsection (2) shall have effect as if for the words “one-sixth” there were substituted the words “one-quarter”.

PART VI

SUPERANNUATION

80.—(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires—

Interpretation
and com-
mencement of
this Part.
1937 c. 68.

“the Act of 1937” means the Local Government Superannuation Act 1937;

“the Act of 1953” means the Local Government Superannuation Act 1953;

1953 c. 25.

“death grant” and “transfer value” have in relation to a contributor the meanings assigned to them respectively by the Regulations of 1954;

“contributor” means a contributor to the fund as respects whom the Corporation are the employing authority;

“the fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to or in respect of him by way of interest on the amount of the contributions returned to him;

“superannuation benefits” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme;

and other expressions to which meanings are assigned by the Act of 1937 have the same respective meanings for the purposes of this Part of this Act.

PART VI
—*cont.*

(2) Without prejudice to the provisions of section 81 (Extension of section 18 of Act of 1953), section 83 (Power to require designated sums to be paid to trustees) and section 84 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of this Part of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Part of this Act.

(3) This Part of this Act shall come into force on the appointed day.

**Extension of
section 18 of
Act of 1953.**

81.—(1) The provisions of subsection (1) of section 18 of the Act of 1953 shall extend and apply in relation to the widow or any qualifying dependant of a person (in this section referred to as “the deceased contributor”) who dies on or after the appointed day, and within one year after ceasing to hold an employment in which he was a contributor, as they apply in relation to the widow or other dependant of an employee who dies while in the employment of the Corporation.

(2) In this section—

“qualifying dependant” means a dependent widower or a dependent child of the deceased contributor;

“dependent widower” means, in relation to a female deceased former contributor, a person who was the husband of the deceased contributor at the time of her death and who is permanently incapacitated and is shown to the satisfaction of the Corporation to have been wholly or mainly dependent on her;

“dependent child” means a person who is for the time being in his period of childhood and full-time education, who—

(a) is a legitimate child of the deceased contributor other than a child born more than twelve months after the date on which the deceased contributor ceased to hold his employment; or

(b) is an adopted child of the deceased contributor other than a child adopted after the termination of the deceased contributor’s last marriage or on or after the date referred to in the foregoing paragraph; or

(c) is an illegitimate child of the deceased contributor other than a child born after the termination of the deceased contributor’s last marriage or more than twelve months after the date referred to in paragraph (a) of this definition; or

(*d*) not being a person such as is referred to in paragraphs (*a*), (*b*) or (*c*) of this definition, is the child of any person who was a wife or is the widow or dependent widower of the deceased contributor other than a child born or adopted after the termination of the marriage of such person to the deceased contributor or on or after the date referred to in paragraph (*a*) of this definition:

Provided that—

(i) no person such as is referred to in paragraph (*c*) or (*d*) of this definition shall be deemed to be a dependent child unless he was, in the opinion of the Corporation, wholly or mainly dependent on the deceased contributor at the time of the death of such deceased contributor; and

(ii) no female person shall be deemed to be a dependent child as respects any period during which she is married or is cohabiting with a man as his wife.

(3) (*a*) A person shall be deemed for the purposes of this section to be in his period of childhood and full-time education—

- (i) while he is under the age of sixteen years; or
- (ii) while he is receiving full-time instruction at any university, college, school or other educational establishment; or
- (iii) during any period approved by the Corporation for the purposes of this paragraph in which he is undergoing training for any trade, profession or vocation:

Provided that unless the Corporation otherwise direct he shall not be deemed to satisfy the condition specified in sub-paragraph (*a*) (ii) or sub-paragraph (*a*) (iii) of this subsection unless there has up till then been no time since he attained the age of sixteen years when he did not satisfy one or other of those conditions.

(*b*) As respects any period during which neither of the conditions specified in sub-paragraph (*a*) (ii) or sub-paragraph (*a*) (iii) of this subsection is satisfied the Corporation may direct either—

- (i) that the period shall be disregarded for the purposes of the proviso to paragraph (*a*) of this subsection; or
- (ii) that the period shall be so disregarded and that the whole or any part of that period shall also be treated for the purposes of this section as part of his period of childhood and full-time education.

PART VI
—cont.Benefits in
certain cases
of premature
retirement.

82.—(1) Where, after the coming into force of this Part of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated in the interests of efficiency before he has attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Corporation in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this Part of this Act, a contributor who has attained the age of fifty-five years and completed twenty-five years' service, but has not attained pensionable age, terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to superannuation benefits by virtue of this subsection he may, by notice given to the Corporation in writing at any time before any payment on account of such benefits has been made to him, elect that this subsection and any rights to which he is entitled thereunder shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Corporation otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person, who has become entitled to superannuation benefits by virtue of subsection (2) of this section, dies before any payment on account of such benefits has been made to him, as from the date of his death the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation allowance for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937 whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Act of 1953 and of any rules made thereunder, a person entitled to superannuation benefits by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which those benefits first become payable to him and superannuation benefits as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the regulations made thereunder.

83.—(1) A contributor may at any time by notice in writing to the Corporation, given in such form as the Corporation may approve, direct that the provisions of this section shall apply to the amount (if any) which would otherwise be payable to his estate by way of death grant, and that any such amount (hereafter in this section and in Schedule 1 to this Act referred to as “the designated sum”) instead of being paid to his estate shall be paid to such responsible persons (not being less than two nor more than four in number and hereafter in this section and in the said Schedule 1 referred to as “the trustees”) as shall be appointed for that purpose by the Corporation, to be held upon the trusts and with and subject to the powers and provisions in force under the said Schedule 1 at the date of such direction.

Power to
require
designated
sums to be
paid to
trustees.

(2) Any direction given in accordance with this section shall be effective and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts and with and subject to the powers and provisions in force under the said Schedule 1 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 1 may from time to time be varied by resolution of the council but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Corporation after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

(5) In this section and in the said Schedule 1 “contributor” includes any person who on or after the date of the coming into force of this Part of this Act is a contributor to the fund, and “former contributor” shall be construed accordingly.

PART VI
—cont.Transfers of
employment.

84.—(1) The Corporation may, in accordance with the provisions of a scheme made by them for the purposes of this section—

(a) as respects any contributor who ceases or has ceased to hold employment under the Corporation in order to enter an employment (in this paragraph referred to as the “new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Corporation:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment under the Corporation from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts and the regulations made thereunder as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State and the Secretary of State may approve any such scheme either with or without modifications after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in

force may make any amendments or modifications of that superannuation scheme that may be desirable to facilitate the operation of any scheme made by the Corporation under this section.

PART VI
—cont.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in sub-paragraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of that subsection.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or by 1948 c. 33. virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

85.—(1) An authority to whom this section applies may by resolution adopt all or any of the sections of this Part of this Act and Schedule 1 to this Act as from such date, not being earlier than the appointed day, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the authority as if—

Application
of the
superannuation
provisions
to other
employing
authorities.

(a) any reference therein to a contributor was a reference to a contributor to the fund as respects whom the authority are the employing authority;

(b) any reference to the Corporation was a reference to the authority.

(2) Where in pursuance of the foregoing subsection any provisions are adopted by an authority to whom this section applies as from a date later than the appointed day, then any reference in those provisions to the appointed day, or to the date of the coming into force of the new superannuation provisions shall be construed in relation to the authority as a reference to such later date.

(3) This section applies to—

- (i) the Teesside Police Authority;
- (ii) the Teesside Magistrates' Courts Committee;
- (iii) the Teesside Probation and After-Care Committee;
- (iv) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Corporation pursuant to section 15 of the Act of 1953;

PART VI
—cont.

- (v) any other employing authority in relation to which the fund is the appropriate superannuation fund within the meaning of paragraph (d) of subsection (3) of section 1 of the Act of 1937.

Transfer of
certain sums
from fund.

86.—(1) If a contributor is dismissed or resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct, the Corporation may transfer from the fund to the general rate fund an amount not exceeding the whole, or any part, of any contributions not returned to him or paid to his wife or family under subsection (4) of section 10 of the Act of 1937, or the amount of loss suffered by the Corporation in consequence of the employee's offence or misconduct whichever is the less.

(2) If a contributory employee of an employing authority whose employees participate in the benefits of the fund is dismissed, resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct by reason of which the employing authority have suffered direct financial loss, the Corporation shall, on demand from the employing authority, pay to them out of such fund an amount equal to so much of the employee's contributions to the fund as the employing authority have not directed to be returned to the employee or paid to his wife or family, or the amount of such loss suffered by the employing authority in consequence of his offence or misconduct, whichever is the less:

1965 c. 51.

Provided that where a payment in lieu of contributions falls to be made in respect of the employee under the National Insurance Act 1965, the Corporation shall not under this subsection be required to pay to the employing authority so much of the employee's contributions as amounts to one-half of such payment in lieu of contributions.

Exclusion of
certain
remuneration
and service for
superannuation
purposes.
1967 c. 12.

87.—(1) Subject to the provisions of subsection (4) of this section, subsection (2) of this section applies to employees—

- (a) who are contributory employees; or
- (b) who are teachers employed in reckonable service within the meaning of the Teachers' Superannuation Act 1967; or
- (c) who are firemen participating in a scheme for the time being in force under section 26 of the Fire Services Act 1947; or
- (d) who by virtue of the provisions of the Superannuation (Policy and Local Government Schemes) Interchange Rules 1948 to 1970 are not subject to the provisions of the principal Acts;

1947 c. 41.

and who are employed whole-time by the Corporation, a magistrates' courts committee, a probation and after-care committee, the managers or governors of a voluntary school, a local valuation panel or any voluntary organisation, undertakers or other body approved by the Secretary of State the employees of which participate in the benefits of the fund.

PART VI
—cont.

(2) The salary, wages, fees and other payments paid or made (whether before or after the passing of this Act) to an employee to whom this subsection applies in respect of any part-time employment (not being employment the duties of which may be performed during the hours which such employee is normally required to devote to his ordinary whole-time employment) by the Corporation or any other authority or body the employees of which participate in the benefits of the fund—

- (a) as an instructor or other employee performing duties at, or for the purposes of, an evening institute or for the purposes of evening classes; or
- (b) as a warden of, or other employee performing duties at, or for the purposes of, a youth centre; or
- (c) as a civil defence instructor; or
- (d) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment;

shall not be remuneration within the meaning of the principal Acts or of any other enactment affecting the fund, and the service of any such contributory employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

(3) Where, before the passing of this Act, any person to whom subsection (2) of this section applies has paid any contribution or contributions to the fund which would not have been so paid if this section had been in force when such contribution or contributions were made, the Corporation shall repay to such person a sum equal to the amount of such contribution or contributions, together with compound interest thereon calculated to the date of repayment at the rate of three pounds per centum per annum with half-yearly rests.

(4) Subsection (2) of this section shall not apply to any such person as is referred to in subsection (3) of this section unless within six months after the passing of this Act he gives notice in writing to the Corporation that the said subsection (2) is to apply to him, whereupon that subsection shall apply to him as if this Act had come into force on the date of the receipt by the Corporation of such notice.

PART VI
—cont.Gratuities to
certain
employees.

88. For the purposes of section 18 of the Act of 1953, as applied to the Corporation, a person employed as a teacher in an aided school in the borough and a person employed in a voluntary controlled school in the borough otherwise than as a teacher shall be deemed to be employed by the Corporation and the Corporation may grant to or in respect of any such person a gratuity in accordance with the provisions of the said section 18.

As to proof
of continued
existence of
pensioners.

89. Notwithstanding anything in the principal Acts, the Corporation shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1920 to 1971, or any other superannuation, pension, compensation or other such payment under any statutory authority to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such time as they may from time to time require of the continued existence of such person.

PART VII

MISCELLANEOUS

Power to
contract for
airport police.

90.—(1) The Joint Committee may from time to time make agreements with a chief officer of police and a police authority for the use by the Joint Committee of any members of the police establishment of that police authority for police duty within the Teesside Airport.

(2) Any such agreement may contain such terms and conditions and provide for such payment or consideration as the Joint Committee shall think proper and shall agree with the police authority.

(3) In this section—

“the Joint Committee” means the Teesside Airport Joint Committee consisting of members appointed by the Corporation, the county council of the administrative county of the North Riding of Yorkshire, the mayor, aldermen and burgesses of the county boroughs of Darlington and Hartlepool and the councils of the urban districts of Guisborough and Saltburn and Marske or any other local authority for the time being forming a joint committee under section 91 of the Act of 1933;

“the Teesside Airport” means the lands and buildings situated in the rural district of Darlington owned by the Corporation and occupied by the Joint Committee for the operation of an airport.

91.—(1) The Corporation may make byelaws for securing the proper ventilation and lighting of any existing stable (whether the same is used as such at the passing of this Act or not) and for the prevention of insanitary conditions—

PART VII
—cont.

Byelaws as
to stables.

(a) in or about or arising out of such stable; or

(b) in or about or arising out of or with regard to the situation, in reference to other buildings, of any stable erected after the passing of this Act.

(2) Any person who contravenes any byelaw made under this section shall be guilty of an offence.

92. Notwithstanding anything contained in section 253 of the Public Health Act 1875, proceedings for the recovery of a penalty under section 28 of the Town Police Clauses Act 1847 may be had or taken by the chief constable of the police force or any member of the police force authorised by him for the purpose.

Recovery of
penalties under
section 28 of
Town Police
Clauses Act
1847.
1875 c. 55.
1847 c. 89.

93. The provisions of section 48 of the National Assistance Act 1948 in its application to the Corporation shall extend to enable the Corporation to take reasonable steps to prevent or mitigate damage to a house of which a person admitted or removed as mentioned in subsection (1) of that section is the owner and which was his place of residence or usual place of residence immediately before such admission or removal, to empower the Corporation to enter any such house at all reasonable times for the purpose of taking such action as may be reasonably necessary to prevent or mitigate damage thereto and to enable the Corporation to recover any reasonable expenses incurred by them for this purpose:

Extension of
section 48 of
National
Assistance
Act 1948.
1948 c. 29.

Provided that the Corporation shall not incur any expenditure for the purpose of preventing or mitigating damage to a house under the provisions of the said section 48 without the consent of the person admitted or removed as aforesaid, unless such consent cannot reasonably be obtained.

94.—(1) Where the Corporation are of the opinion that, by reason of damage caused thereto or as the result of unlawful breaking and entering or breaking out or attempted breaking and entering or breaking out, any house or building in the borough is not effectively secured so as to prevent unlawful entry, they may themselves do such things in relation to the house or building as are reasonably required effectively to secure it against such entry and may recover from the owner or occupier thereof any reasonable expenses incurred by them in so doing:

Protection of
property
broken into,
etc.

Provided that the Corporation shall not exercise their powers under this section without the consent of the owner or occupier

PART VII
—cont.

of the house or building unless his identity or whereabouts cannot after reasonable enquiry be ascertained.

(2) The Corporation may delegate their powers under this section to the police authority with or without restrictions or conditions.

Prohibition
of parking
in front
gardens.

95.—(1) (a) If representation is made in manner hereinafter mentioned to the Corporation that the amenities of the neighbourhood are prejudiced by the habitual use of the front garden of any private dwelling-house in a street in the borough as a parking place for any heavy commercial vehicle or caravan the Corporation on complying with the provisions of this section may make an order precluding the use of the front gardens of the private dwelling-houses in that street or any part thereof as a parking place for heavy commercial vehicles or caravans.

(b) A representation under the foregoing paragraph shall be made in writing and signed by not less than ten local government electors residing in private dwelling-houses which are within 100 yards of the said front garden.

(2) If the Corporation consider that such an order should be made they shall—

(a) publish a notice thereof in a local newspaper circulating in the borough and stating where the draft order can be inspected and copies purchased, and that objections to the said order may be made in writing to the Corporation within one month from the date of the first publication of the notice; and

(b) not later than the date on which the notice is so published serve by post a copy thereof on the owner or occupier of every private dwelling-house in the street, or the part thereof, to which the draft order relates.

(3) The Corporation shall consider any such objections so made and shall afford to the owner or occupier of any dwelling-house abutting or fronting on such street or such part thereof who has made objection an opportunity of being heard by a committee of the council before the order is made.

(4) (a) After considering any objections duly made under subsection (2) of this section the Corporation may make an order prohibiting the use of the front garden of any dwelling-house in the street or the part of a street specified in the order as a parking place for one or more heavy commercial vehicles or caravans.

(b) Any such order shall come into operation at the expiration of the period of one month after the first publication in pursuance of subsection (5) of this section of the notice of the order or, if an appeal is lodged, when the appeal is disposed of or withdrawn or fails for want of prosecution and shall have effect for such period not exceeding five years as the Corporation may determine.

(5) When an order has been made by the Corporation under this section they shall give notice thereof and of the right of appeal by publication in a local newspaper circulating in the borough and the owner or occupier of a dwelling-house in the borough who is aggrieved by the order may appeal to a magistrates' court:

PART VII
—cont.

Provided that in its application to an appeal under this section section 300 of the Act of 1936 shall have effect as if the time within which such an appeal may be brought were one month from the first publication in pursuance of this subsection of the notice of the order to which the appeal relates.

(6) For the purposes of this section—

“caravan” means any van or other conveyance (whether on wheels or not) constructed or adapted for use for human habitation;

“dual-purpose vehicle” means a vehicle constructed or adapted for the carriage both of passengers and of goods or burden of any description being a vehicle of which the unladen weight does not exceed two tons and which either—

(a) satisfies the conditions as to construction specified in Schedule 2 to this Act; or

(b) is so constructed or adapted that the driving power of the engine is or by the appropriate use of the controls of the vehicle can be transmitted to all the wheels of the vehicle;

“front garden” means so much of a garden or land belonging to or used in connection with a private dwelling-house as lies in front of—

(a) any building line prescribed by the Corporation in respect of the land under the provisions of any enactment; or

(b) if there be no such line then any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the Corporation under the provisions of section 169 of the Act of 1959; or

(c) if there be neither of such lines then the line beyond which a house or building may not (except with the consent of the Corporation) be erected or brought forward on the land without contravening the provisions of section 75 of the Act of 1959;

“heavy commercial vehicle” means any vehicle (not being a dual-purpose vehicle) whether mechanically propelled

PART VII
—cont.

or not constructed or adapted for the carriage of goods and having an unladen weight exceeding thirty hundredweight;

“ private dwelling-house ” means a dwelling-house of which no part is used for the purposes of any trade or business and includes a block of flats no part of which is used for the purposes of any trade or business.

(7) For the purposes of this section a vehicle having an unladen weight exceeding thirty hundredweight in which is installed freezing equipment designed or used for the manufacture of ice-cream or any similar commodity and which but for the installation of that equipment would have an unladen weight of thirty hundredweight or less shall be deemed not to be a heavy commercial vehicle but the exemption afforded to such a vehicle by this subsection shall only have effect—

- (a) if and so long as the equipment is not in operation; or
- (b) if the equipment is in operation, if and so long as it is so operated as not to cause a nuisance by reason of the noise of the equipment in operation or the smell emanating from it.

(8) The occupier of any front garden or part thereof or the person having control of a front garden or part thereof who permits the same to be used in contravention of an order under this section and any person who parks a heavy commercial vehicle or caravan in a front garden in contravention thereof shall be guilty of an offence.

(9) Nothing in any order made under this section shall apply so as to prevent a heavy commercial vehicle waiting in the front garden of any private dwelling-house in a street to which the order relates for any period not exceeding one hour.

Further
power to
remedy
obstructed
private
sewers.

96.—(1) Where—

- (a) several premises in the occupation of different persons are drained by means of a private sewer belonging to the owners or occupiers of those premises; and
- (b) it appears to the medical officer or the public health inspector that the sewer is obstructed;

he may by notice in writing require the persons concerned to remedy the defect within forty-eight hours from the service of the notice.

(2) If the notice is not complied with, the Corporation may themselves carry out the work necessary to remedy the defect and may, subject to the provisions of subsection (3) of this section,

recover the expenses reasonably incurred in so doing from the persons concerned in such proportions as they may determine.

PART VII
—cont.

(3) In proceedings to recover expenses under this section the court may inquire whether any requirement contained in a notice served under this section was reasonable and whether any apportionment by the Corporation was fair, and the court may make such order concerning the expenses or their apportionment as appears to the court to be just:

Provided that the court shall not revise an apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

(4) In this section “persons concerned” means, in relation to a private sewer which is obstructed, the owner or occupier of the premises on which the sewer is situated at the point at which the obstruction occurs and the owner or occupier of any other premises drained by means of that sewer if the point at which foul water and surface water are discharged from those other premises to the sewer is situated at a level which is higher than that of the said point of obstruction.

(5) The provisions of this section shall be without prejudice to section 39 of the Act of 1936 and section 17 of the Public Health Act 1961.

1961 c. 64.

97.—(1) On and after the appointed day a driver shall not in the borough leave unattended a specified vehicle otherwise than within an allocated area except for the purpose of dealing with an emergency affecting the said vehicle or his person or with a breakdown of or necessary repairs to the said vehicle.

Prohibition
of parking
of certain
vehicles.

(2) Any person who contravenes the provisions of the foregoing subsection shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds or, in the case of a second or subsequent conviction, to a fine not exceeding fifty pounds.

(3) The provisions of subsections (2) and (3) of section 85 of the Road Traffic Regulation Act 1967 shall apply to an offence under subsection (1) of this section as they apply to offences under subsection (1) of that section.

1967 c. 76.

(4) For the purposes of this section a person shall be deemed to be in attendance on a specified vehicle so long as he has the said vehicle under constant supervision and—

“allocated area” means an area either—

(a) within an open yard on enclosed premises and with the consent of the occupier of the said premises at which a specified vehicle is loaded or unloaded or other specified vehicles are from time to time loaded or unloaded; or

PART VII
—cont.

(b) approved by the Corporation for a person to leave a specified vehicle;

“corrosive substance” has the same meaning as in the Corrosive Substances (Conveyance by Road) Regulations 1971;

“flammable substance” means any substance which is included in the Petroleum (Inflammable Liquids) Order 1968 and the Petroleum (Compressed Gas) Order 1930;

“specified vehicle” means a tank trailer, tank wagon or other open vehicle which contains any substance which is corrosive, toxic or flammable at the time the vehicle is left, and which is specially constructed or specially adapted wholly or mainly for the conveyance of more than 250 kilogrammes in weight of any such substance;

“toxic substance” means phenol, ammonia, chlorine, sodium cyanide, potassium cyanide, acetone cyanhydrin or any other substance, solution or mixture which may from time to time be designated by the Secretary of State pursuant to the powers contained in any enactment.

PART VIII

GENERAL

Confirming
authority for
byelaws.

98. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

Local inquiries.

99.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

1946 c. 31.

Restriction
on right to
prosecute.

100. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation or a constable.

Appeals.

101.—(1) Section 300 of the Act of 1936 shall apply to appeals to the magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

PART VIII
—cont.

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired, or, if an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

102.—(1) In proceedings under any enactment, a document purporting to be certified by the town clerk as a copy of a resolution passed, order made or report received by the council or a committee thereof on a specified date, shall be evidence that that resolution, order or report was duly passed, made or received by the council or committee on that date. Evidence of proceedings, appointments, etc.

(2) In proceedings under any enactment, a document purporting to be certified as aforesaid as a copy of the appointment of, or of an authority given to, an officer of the council or a committee thereof on a specified date shall be evidence that that appointment was duly made, or that that authority was duly given, by the council or committee on that date.

(3) In this section “ officer ” includes a servant and an agent.

(4) Section 286 of the Act of 1936, and that section as applied by, or incorporated in, any other enactment, shall cease to apply to the council and its committees.

103.—(1) Where an offence under the sections of this Act mentioned in Schedule 3 to this Act or against any byelaw made pursuant to this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate Liability of directors, etc

PART VIII
—cont.

or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(2) In the foregoing subsection “director” in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body.

Penalties for
offences
against Act.

104.—(1) Any person guilty of any of the offences against the provisions of this Act specified in column (1) of Part I of Schedule 4 to this Act shall be liable on summary conviction to a fine not exceeding the maximum specified in column (2) of Part I of the said schedule opposite to such offence, or to imprisonment for a period not exceeding the maximum specified in column (3) of Part I of the said schedule opposite to such offence, or to both such fine and such imprisonment.

(2) Any person guilty of any of the offences against the provisions of this Act specified in column (1) of Part II of Schedule 4 to this Act shall be liable on summary conviction to a fine not exceeding the maximum specified in column (2) of Part II of the said schedule opposite to such offence or where the contravention in respect of which a person is convicted of an offence against this Act is continued after conviction, the person shall be liable on summary conviction to a further fine not exceeding the maximum specified in column (3) of Part II of the said schedule opposite to such offence for each day or part of a day during which the contravention is shown to have been continued.

(3) Any person guilty of an offence against the provisions of this Act not hereinbefore specified or specified in Schedule 4 to this Act shall be liable on summary conviction to a fine not exceeding twenty pounds.

The appointed
day.

105.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that day.

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

PART VIII
—cont.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of a person carrying on any business, or of premises used for any purpose, it shall be lawful for any person who—

(a) immediately before that day was carrying on that business, or using any premises for that purpose; and

(b) had before that day duly applied for the registration required by that provision;

to continue to carry on that business, or to use those premises for that purpose, until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under subsection (2) of section 101 (Appeals) of this Act.

106.—(1) Subject to section 40 (Penalties for certain offences under this head of this Part of Act) of this Act, the sections of the Act of 1936 mentioned in Part I of Schedule 5 to this Act shall have effect as if references therein to that Act included references to this Act.

Application
of general
provisions of
Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included references to the following Parts or provisions of this Act, namely:—

Part II (Fire precautions);

Part III (Trade administration and licensing);

Section 91 (Byelaws as to stables);

Section 94 (Protection of property broken into, etc.);

Section 96 (Further power to remedy obstructed private sewers);

Section 97 (Prohibition of parking of certain vehicles).

107. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Protection of
members and
officers of
Corporation
from personal
liability.
1875 c. 55.

PART VIII
—cont.
Arbitration.

108. In arbitrations under this Act the reference shall be to a single arbitrator to be appointed by agreement between the parties or, in default of agreement, to be appointed on the application of any party (after giving notice in writing to the other party or parties) except as hereinbefore provided by the President of the Institution of Civil Engineers.

Saving for
Redcar Pier
Order 1948.
1948 c. xxii.

109. Notwithstanding anything in article 51 of the Teesside Order 1967 the Redcar Pier Order 1948 (confirmed by the Pier and Harbour Order (Redcar) Confirmation Act 1948) shall apply and have effect as if—

- (a) the said Order had been re-enacted in this Act; and
- (b) references therein to “ the borough ”, “ the Corporation ” and “ the council ” had the respective meanings assigned to those expressions in section 3 (Interpretation) of this Act.

Crown rights.

110.—(1) Subject to the provisions of this section, nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein contained authorises the Corporation to take, use or in any manner interfere with, any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

1950 c. 39.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Corporation to carry out code-regulated works within the meaning of the Public Utilities Street Works Act 1950 in any highway vested in or maintained by the Secretary of State.

Saving for
Town and
Country
Planning
Acts.

111. Section 220 of the Act of 1962 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this

Act as if it had been passed during that session; and accordingly the Town and Country Planning Acts 1962 to 1968 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

PART VIII
—cont.

112. The costs, charges and expenses preliminary to and of and incidental to the preparation of and the application for and the obtaining and passing of this Act shall be paid by the Corporation. Costs of Act.

SCHEDULES

Section 83.

SCHEDULE 1

SETTING OUT THE TRUSTS, POWERS AND PROVISIONS UPON, WITH AND SUBJECT TO WHICH THE DESIGNATED SUM IS TO BE HELD IN PURSUANCE OF A DIRECTION GIVEN BY A CONTRIBUTOR UNDER SECTION 83 (POWER TO REQUIRE DESIGNATED SUMS TO BE PAID TO TRUSTEES) OF THIS ACT

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 83 (Power to require designated sums to be paid to trustees) of this Act should apply and the income thereof upon the trusts and with and subject to the following powers and provisions, that is to say:—

- (1) During the period of twenty-one years from the death of the former contributor the trustees may pay or apply the designated sum and the income thereof or any part thereof respectively to or for the benefit of all or any one or more exclusively of the other or others of the following persons:—
 - (a) the widow or widower of such former contributor;
 - (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;
 - (c) the issue of such former contributor;
 - (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
 - (e) the person or persons (if any and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine and so that the trustees may if they think fit pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof.
- (2) In addition to the powers conferred on them by virtue of the foregoing paragraph (1), during the said period of twenty-one years the trustees may at any time pay or apply the designated sum and the income thereof or any part thereof respectively to or for the benefit of any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death in such manner as the trustees shall in their absolute discretion think fit.
- (3) Subject as aforesaid, the designated sum and the income thereof or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this Schedule shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death of such former

contributor have become entitled thereto under the Administration of Estates Act 1925, as amended by the Intestates' Estates Act 1952, or any statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent and so that such persons if more than one shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts and subject to the conditions therein contained.

SCH. 1
—cont.

1925 c. 23.
1952 c. 64.

- (4) In this Schedule the expressions " grandparent " and " issue " shall be construed as if the step-child, adopted child or illegitimate child of any person was that person's child, and " issue " includes issue in any degree.

SCHEDULE 2

Section 95.

CONDITIONS AS TO CONSTRUCTION OF DUAL-PURPOSE VEHICLES

1. The vehicle must be permanently fitted with a rigid roof with or without a sliding panel.
2. The area of the vehicle to the rear of the driver's seat must—
 - (a) be permanently fitted with at least one row of transverse seats (fixed or folding) for two or more passengers and those seats must be properly sprung or cushioned and provided with upholstered backrests attached either to the seats or to a side or the floor of the vehicle; and
 - (b) be lit on each side and at the rear by a window or windows of glass or other transparent material having an area or aggregate area of not less than 2 square feet on each side and not less than 120 square inches at the rear.
3. The distance between the rearmost part of the steering wheel and the backrests of the row of transverse seats satisfying the requirements specified in paragraph 2 of this schedule (or if there is more than one such row of seats the distance between the rearmost part of the steering wheel and the backrests of the rearmost such row) must when the seats are ready for use be not less than one-third of the distance between the rearmost part of the steering wheel and the rearmost part of the floor of the vehicle.

SCHEDULE 3

Section 103.

SECTIONS OF ACT TO WHICH SECTION 103 OF THIS ACT APPLIES

- Section 9 (Offences under sections 5, 7 and 8);
 Section 40 (Penalties for certain offences under this head of this Part of Act);
 Section 44 (Penalties under this head of this Part of Act);
 Section 45 (Registration of tattooists);
 Section 46 (Hairdressers);
 Section 48 (Registration of premises);
 Section 50 (Offences in connection with conduct of night cafés).

Section 104.

SCHEDULE 4

MAXIMUM PENALTIES FOR OFFENCES AGAINST ACT

PART I

(1) Provision of Act contravened	(2) Maximum fine	(3) Maximum period of imprison- ment
Paragraph (b) of subsection (1) of section 48 (Registration of premises)	£200	3 months
Paragraph (b) of subsection (3) of section 48 (Registration of premises)	£200	3 months
Section 50 (Offences in connection with conduct of night cafés)	£200	3 months

PART II

(1) Provision of Act contravened	(2) Maximum fine	(3) Maximum daily fine
Subsection (1) of section 9 (Offences under sections 5, 7 and 8)	£50	£10
Subsection (3) of section 9 (Offences under sections 5, 7 and 8)	£20	£20
Subsection (8) of section 13 (Firemen's switches for luminous tube signs and ventilation systems)	£50	
Subsection (7) of section 15 (Parts of buildings used for storage of flammable substances)	£50	£5
Subsection (2) of section 16 (Prescription of signs, etc., to be used on certain buildings)	£50	£5
Subsection (4) of section 18 (Fire precautions in certain buildings)	£50	£10
Paragraph (a) of subsection (5) of section 19 (Oil- burning equipment)	£50	
Subsection (5) of section 20 (Underground parking places)	£200	
Subsection (2) of section 21 (Further provision as to underground parking places)	£100	£10
Paragraph (a) of subsection (2) of section 23 (Pro- vision of means of escape from fire in certain buildings)	£50	
Subsection (5) of section 24 (Fire precautions in certain large buildings)	£50	£10
Subsection (2) of section 38 (Clients' money)	£100	
Paragraph (a) of subsection (1) of section 40 (Penalties for certain offences under this head of this Part of Act)	£100	
Section 44 (Penalties under this head of this Part of Act)	£20	£5
Subsection (7) of section 95 (Prohibition of parking in front gardens)	£20	£5

SCHEDULE 5

Section 106.

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PARTS II AND III AND SECTIONS 91, 94, 96 AND 97
OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owners.
290	Provision as to appeals against, and the enforcement of, notices requiring execution of works.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act 1925. 1925 c. 22.

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